

Citizenship

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Citizenship: the membership architecture

Constitution at commencement -> Parliament -> present statutory status



Core exam rule: document, domicile, residence and citizenship are not synonyms.

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Citizenship - Learner-v2 Source-Complete Learning Session

Catalogue identity: Polity · Subject-wide Syllabus · polity-06 **Generation identity:** polity-06: learner-v2:g2 · generated 21 August 2026 · supersedes polity-06: legacy-v1:g1 in metadata only **Approval:** false - explicit approval of this exact generation is still required. **Evidence key:** [FACT] = source-supported fact · [ANALYSIS] = exam synthesis · [CURRENT] = verified current status · [LIMIT] = ownership, search or interpretation boundary.

BASIC LEARNING SESSION

Source audit, preservation, syllabus boundary and package counts

- **Mandatory source order followed:** immutable legacy complete Topic 06 package -> Basic owner ->

Advanced owner -> official Constitution/Act/Rules, Polity syllabus/README and PYQ ledgers -> local OCR-searchable Laxmikanth books and official papers -> live official MHA/Gazette/PIB/Supreme Court/ UIDAI sources. Qdrant was not used.

- **Local OCR control:** Citizenship chapters were text-checked in

books\Indian Polity by M Laxmikant.pdf and books\Courseware on Indian Polity by M Laxmikanth.pdf; official local papers supplied 2018 Prelims GS-I Q12 and 2021 Prelims GS-I Q89.

- **Verified relevant PYQs:** 2. The direct owner is 2021 Prelims GS-I Q89. The 2018 Aadhaar citizenship-proof question is retained as a genuine cross-topic document-status PYQ. No direct Mains citizenship PYQ was found in the audited repository ledgers or official local papers.

- **Practice:** 40 core MCQs + 8 remedials with exact continuous A -> B -> C -> D rotation; six original solved Mains models (2 x 10, 2 x 15, 2 x 20).

- **Preservation:** the legacy g1 main PDF, workbook PDF and canonical Markdown remain untouched with SHA-256 hashes 404D71D915CDD16E8F3F668E0D955B3D1DE0F07FEB5325A8E37AE1F4C15AC2D, A46D6B09244B4679D005D52B19BCE48D29A6970C43F73BCC4543CC72B7BFF927 and B1FFEB37CC7A02741F4ADF19003256EC0628479A6D6ACED950232CA339812A07.

- **Flowchart audit:** a recursive filename, content and tracker search found no dedicated approved Citizenship flowchart. The new companion is separate and remains approved: false.

- **Syllabus boundary:** this package owns constitutional/statutory citizenship. Detailed asylum and refugee policy remains with International Relations/Governance; electoral-roll machinery with Elections; full Article 19 doctrine with Fundamental Rights; and political-theory critique is used only at owner depth.

Official live-status decision - checked through 21 August 2026

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (CURRENT STATUS): As verified on the located official record through 21 August 2026, the 2019 Act and 2024 Rules are operative, the CAA constitutional challenges have no located final judgment, Section 6A remains valid under the 4:1 decision with implementation monitoring, and the 2021 OCI notification remains unsuperseded.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS + CURRENT-LAW CONTROL

- [FACT] The MHA's current Foreigners Division law listing continues to publish the Citizenship Act, 1955, the Citizenship (Amendment) Act, 2019 and the Citizenship (Amendment) Rules, 2024. A bounded official-source search located no later citizenship amendment or citizenship-rule change that alters the five acquisition routes, three loss routes, Section 6A, Section 6B or the 2014 CAA cut-off.
- [FACT] The Immigration and Foreigners Act, 2025 came into force on 1 September 2025. It repealed

four older immigration statutes but preserved prior rules, orders and actions so far as consistent, and states that other laws continue to apply. It did not repeal or amend the Citizenship Act, 1955.

- [FACT] The Immigration and Foreigners (Exemption) Order, 2025 exempts the same six named minority communities from Afghanistan, Bangladesh and Pakistan who entered on or before 31 December 2024 from specified passport/visa requirements under the new immigration regime. [LIMIT] This is an immigration-document exemption, not citizenship and not an amendment of the CAA's 31 December 2014 statutory citizenship cut-off.

- [FACT] PIB verified the first 14 certificates under the 2024 Rules in Delhi on 15 May 2024, certificates through empowered committees in West Bengal, Haryana and Uttarakhand on 29 May 2024, and distribution of 188 certificates in Ahmedabad on 18 August 2024. These facts prove operation, not constitutional validity or automatic entitlement.

- [FACT] Supreme Court orders dated 19 February 2026 separated the Assam/Tripura group from the main CAA challenge and scheduled final hearing in May 2026; an order dated 20 March 2026 extended the time for additional material to 10 April 2026. [LIMIT] Exact official-domain searches through 21 August 2026 located no later final constitutional judgment, so the challenges remain described as pending.

- [FACT] The 17 October 2024 Constitution Bench judgment upholding Section 6A by 4:1 remains controlling. A 6 February 2025 order constituted implementation monitoring and required Union/Assam compliance material. A bounded official search located no review or later merits order altering the 4:1 holding.

- [FACT] MHA continues to identify S.O. 1050(E), 4 March 2021 as the operative Section 7B OCI notification. No later official notification superseding its rights/restrictions was located.

Master learning roadmap

MEMBERSHIP + CITIZEN/ALIEN CAVEAT + RIGHTS TEXT

- > CITIZENSHIP / DOMICILE / RESIDENCE + SINGLE CITIZENSHIP
- > ARTICLES 5-11: COMMENCEMENT ROUTES -> DISQUALIFIER -> CONTINUITY -> PARLIAMENT
- > CITIZENSHIP ACT: BIRTH / DESCENT / REGISTRATION / NATURALISATION / INCORPORATION
- > LOSS: RENUNCIATION / TERMINATION / CATEGORY-LIMITED DEPRIVATION
- > ASSAM ACCORD -> SECTION 6A -> NRC DATE -> 2024 MAJORITY / DISSENT -> MONITORING
- > OCI / PIO EVOLUTION -> NOTIFIED RIGHTS -> RESTRICTIONS -> CANCELLATION
- > CAA CLASS -> RULES 2024 -> ARTICLE 14 / SECULARISM -> 2025 IMMIGRATION CAUTION
- > DOCUMENT PROOF -> PYQ ROUTES -> 10/15/20-MARK ANSWER SPINES -> FINAL VERDICT

Stage	Classification	Examination result
Membership and rights	CORE PRELIMS + CORE MAINS	Eliminates citizen/person and voting-right traps
Articles 5-11	CORE PRELIMS	Masters commencement logic and migration dates
Act acquisition/loss	CORE PRELIMS + CORE MAINS	Controls thresholds, categories and procedures
Single citizenship	CORE MAINS	Balances integration with regional protection
Section 6A / OCI / CAA	CORE PRELIMS + CORE MAINS	Handles current statutory and litigation questions
Political theory and four-layer review	OPTIONAL ADVANCED	Adds qualified depth without displacing law

Answer-line control register

The following controlled sentences appear unchanged in the relevant teaching stage, the learning PDF and the separate flowchart companion.

1. **OPENING:** Citizenship is the legally recognised membership of the Indian political community: it links allegiance and protection, allocates political voice and selected public offices, and remains principally statutory after the Constitution's commencement settlement.
2. **RIGHTS MAP:** India's rights map follows constitutional text, not a citizen-versus-alien slogan: Articles 14, 20, 21 and 25 protect persons; Articles 15, 16, 19 and 29 are citizen-specific; Article 30 speaks of minorities; and voting is statutory, not a Fundamental Right.
3. **ARTICLES 5-11:** Articles 5-8 identified citizens at commencement, Article 9 disqualified voluntary foreign citizenship for the specified commencement routes, Article 10 continued status subject to law, and Article 11 empowered Parliament to build the permanent statutory regime.
4. **ACQUISITION / LOSS:** The Citizenship Act, 1955 creates five acquisition routes-birth, descent, registration, naturalisation and incorporation of territory-and three distinct loss routes-renunciation, termination and category-limited deprivation-each with its own trigger and safeguards.
5. **SINGLE CITIZENSHIP:** India combines one national citizenship and one Indian domicile with constitutionally authorised regional protection; residence preferences, Articles 16(3), 19(5) and 371 safeguards do not create State citizenship.
6. **SECTION 6A:** Section 6A is an Assam-specific route to Indian citizenship: pre-1966 entrants are deemed citizens, the 1966-before-25-March-1971 stream faces detection, registration and ten years without electoral-roll inclusion, and post-cut-off entrants receive no protection.
7. **OCI:** OCI is calibrated diaspora access for a foreign national-not dual citizenship-because notified mobility and socio-economic facilities coexist with no vote, no Indian passport and no claim to citizen-reserved public office.
8. **CAA DEBATE:** The CAA debate turns on whether a six-community, three-country and 31-December-2014 facilitation is a reasonable humanitarian classification or an under-inclusive religion-coded preference incompatible with Article 14 and secularism.
9. **CURRENT STATUS:** As verified on the located official record through 21 August 2026, the 2019 Act and 2024 Rules are operative, the CAA constitutional challenges have no located final judgment, Section 6A remains valid under the 4:1 decision with implementation monitoring, and the 2021 OCI notification remains unsuperseded.
10. **FINAL VERDICT:** Indian citizenship law is constitutionally founded, statutorily administered and judicially reviewable; its legitimacy depends on reconciling equal membership and fraternity with lawful migration control, regional protection and non-arbitrary classification.

01. Citizenship as legal membership: citizen, alien and the constitutional rights map

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (OPENING): Citizenship is the legally recognised membership of the Indian political community: it links allegiance and protection, allocates political voice and selected public offices, and remains principally statutory after the Constitution's commencement settlement.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (RIGHTS MAP): India's rights map follows constitutional text, not a citizen-versus-alien slogan: Articles 14, 20, 21 and 25 protect persons; Articles 15, 16, 19 and 29 are citizen-specific; Article 30 speaks of minorities; and voting is statutory, not a Fundamental Right.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Citizenship: the membership architecture

Constitution at commencement -> Parliament -> present statutory status



Core exam rule: document, domicile, residence and citizenship are not synonyms.

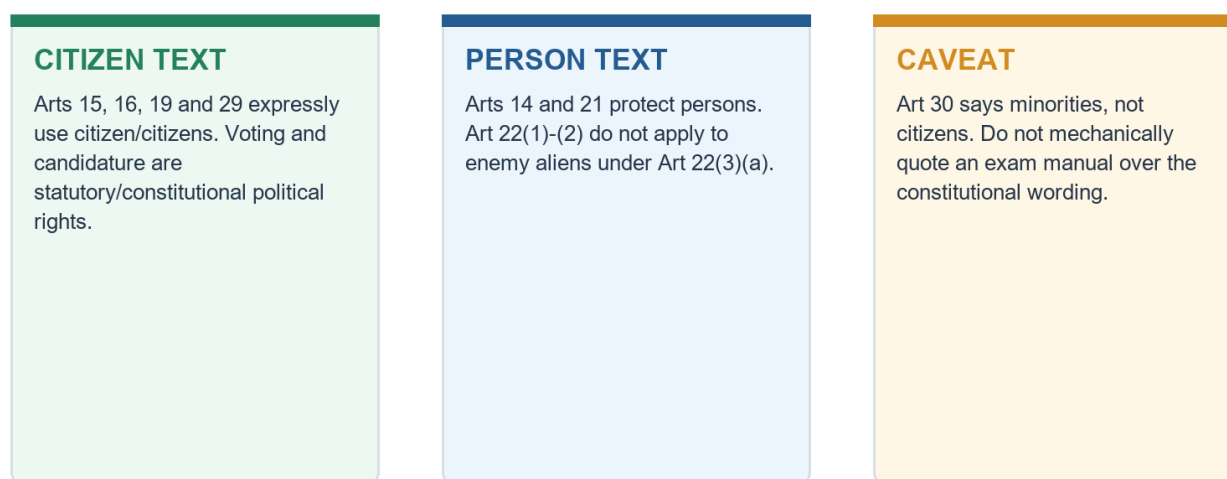
Citizenship links the Constitution at commencement to Parliament's present statutory framework.

[FACT] Citizenship is the legal status of full membership in the Indian political community. It creates a reciprocal relation: the citizen owes allegiance to India, while the constitutional and statutory order recognises a bundle of civil and political entitlements.

[FACT] An **alien** is a person who is not an Indian citizen. Traditional polity texts distinguish a friendly alien from an enemy alien, but this classification does not mean that every non-citizen lacks fundamental rights. The Constitution frequently protects **persons**, not merely citizens.

Who gets which constitutional protection?

Textual precision prevents the citizen-only-rights trap



Holding a right still requires its own conditions: citizenship alone never guarantees office or enrolment.

The constitutional wording, not an exam-manual list, controls whether a right is citizen-specific.

Provision	Exact beneficiary language	Citizenship consequence
Article 14	Any person	Equality before law and equal protection extend to citizens and non-citizens.

Provision	Exact beneficiary language	Citizenship consequence
Article 15	Citizen / citizens	The non-discrimination guarantees in Article 15 are textually citizen-specific.
Article 16	Citizens	Equality of opportunity in public employment is citizen-specific.
Article 19	All citizens	The six freedoms are confined to citizens.
Articles 20 and 21	Person / no person	Criminal-law safeguards and life/personal liberty are not citizen-only.
Article 22(1)-(2)	Person, but subject to Article 22(3)	Enemy aliens and preventive detainees are excluded from clauses (1)-(2); avoid the loose claim that every part of Article 22 disappears in every situation.
Article 25	All persons	Freedom of conscience and religion is not citizen-only.
Article 29(1)-(2)	Section of citizens / no citizen	The textual guarantees are citizen-specific.
Article 30	All minorities	Article 30 does not itself use the word "citizen". Do not mechanically reproduce a simplified list without this textual caveat.

[FACT] Voting is not a Fundamental Right. A citizen must also satisfy the Representation of the People Act, 1950, including ordinary residence in a constituency and the statutory age/registration conditions. A non-citizen is disqualified from electoral registration under Section 16.

[FACT] Candidature and high office also require citizenship plus office-specific conditions. The President need only be a **citizen of India** under Article 58; India does not impose the United States' "natural-born citizen" rule. Naturalised and registered citizens are not constitutionally excluded merely because their citizenship was acquired after birth.

Office or political role	Citizenship anchor	Caveat
President	Article 58	Must also be 35 and qualified for Lok Sabha membership.
Vice-President	Article 66 read with Rajya Sabha qualifications	Citizenship alone is insufficient.
MP / MLA	Articles 84/173 and RPA	Statutory qualifications and disqualifications apply.
Governor	Article 157	Must be a citizen and at least 35.
Supreme Court / High Court judge	Articles 124/217	Citizenship plus prescribed judicial/legal experience.
Attorney General / Advocate General	Articles 76/165	Qualification is tied to judicial-office eligibility.

UPSC trap: "Only citizens possess fundamental rights." Wrong. Some rights are citizen-specific; many crucial protections, especially Articles 14 and 21, protect persons.

SUBTOPIC CLOSURE FLOW | Citizenship as legal membership: citizen, alien and the constitutional rights map

1. KEY TERMS / DEFINITIONS

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (OPENING): Citizenship is the legally recognised membership of the Indian political community; it links allegiance and protection, allocates political voice and selected public offices, and remains principally statutory after the Constitution's commencement settlement.

2. MECHANISM / ARGUMENT

It creates a reciprocal relation: the citizen owes allegiance to India, while the constitutional and statutory order recognises a bundle of civil and political entitlements.

3. CONSEQUENCE / CONTRAST

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

4. UPSC TRAP / ANSWER-USE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (RIGHTS MAP): India's rights map follows constitutional text, not a citizen-versus-alien slogan: Articles 14, 20, 21 and 25 protect persons; Articles 15, 16, 19 and 29 are citizen-specific; Article 30 speaks of minorities; and voting is statutory, not a Fundamental Right.

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02. Citizenship, domicile and residence - and why India still has single citizenship

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (SINGLE CITIZENSHIP): India combines one national citizenship and one Indian domicile with constitutionally authorised regional protection; residence preferences, Articles 16(3), 19(5) and 371 safeguards do not create State citizenship.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Citizenship, domicile and residence

Three different questions; one frequent UPSC trap

CITIZENSHIP

Legal membership of India.
Source: Constitution + 1955 Act.
Carries political eligibility subject to conditions.

DOMICILE

Legal permanent home/intention concept. Article 5 used domicile in India. Constitutional doctrine recognises one Indian domicile.

RESIDENCE

Physical/ordinary presence. Used for electoral constituency, registration/naturalisation periods and lawful local preferences.

Regional safeguards, local cadres or residence benefits do not create separate State citizenship.

Citizenship, domicile and residence answer three different legal questions.

Concept	Core question	Legal effect
Citizenship	Of which State is the person a legal member?	Political membership, passport/nationality consequences and citizen-specific constitutional rights.
Domicile	Which legal system is the person's permanent home, supported by residence and intention?	Article 5 used domicile in India as a commencement condition; doctrine recognises domicile in India, not a second State citizenship.
Residence	Where does the person factually or ordinarily live?	Used for electoral rolls, statutory residence periods, admissions, benefits and some lawful regional preferences.

[FACT] In *Pradeep Jain v. Union of India* (1984), the Supreme Court stressed that the Constitution recognises one citizenship and one domicile in the territory of India. The expression "State domicile" is often used administratively, but

it usually describes residence/local-status rules, not a sovereign domicile or separate citizenship.

[FACT] India has **single citizenship** despite a federal distribution of legislative and executive power. There is no citizenship of Kerala, Assam, Maharashtra or any other State separate from Indian citizenship.

[ANALYSIS] Single citizenship serves integration and equal political membership, but it does not produce identical residence benefits everywhere. The Constitution permits carefully bounded regional protection:

- Article 16(3) authorises **Parliament**, not every State legislature acting on its own, to prescribe residence requirements for specified public employment.
- Article 19(5) permits reasonable restrictions on movement/residence in the general public interest or for protection of Scheduled Tribes.
- Articles 371A to 371J and related orders create region-specific institutional, land, customary-law or local-cadre safeguards.
- Article 15(1) prohibits discrimination on **place of birth**, but does not list residence as a prohibited ground; residence preferences remain subject to Article 14 and the rest of the Constitution.
- The former Article 35A/J&K permanent-resident regime is not a current constitutional exception after the 2019 changes.

[LIMIT] These are asymmetrical protections inside a single citizenship. Calling them "separate State citizenship" is legally wrong.

Close-option rule: Citizenship is membership; domicile is permanent legal home; residence is a factual connection. One can reside in a State without becoming a different citizen.

SUBTOPIC CLOSURE FLOW | Citizenship, domicile and residence - and why India still has single citizenship

1. KEY TERMS / DEFINITIONS

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (SINGLE CITIZENSHIP): India combines one national citizenship and one Indian domicile with constitutionally authorised regional protection; residence preferences, Articles 16(3), 19(5) and 371 safeguards do not create State citizenship.

2. MECHANISM / ARGUMENT

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

3. CONSEQUENCE / CONTRAST

!Citizenship, domicile and residence answer three different legal questions.

4. UPSC TRAP / ANSWER-USE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (SINGLE CITIZENSHIP): India combines one national citizenship and one Indian domicile with constitutionally authorised regional protection; residence preferences, Articles 16(3), 19(5) and 371 safeguards do not create State citizenship.

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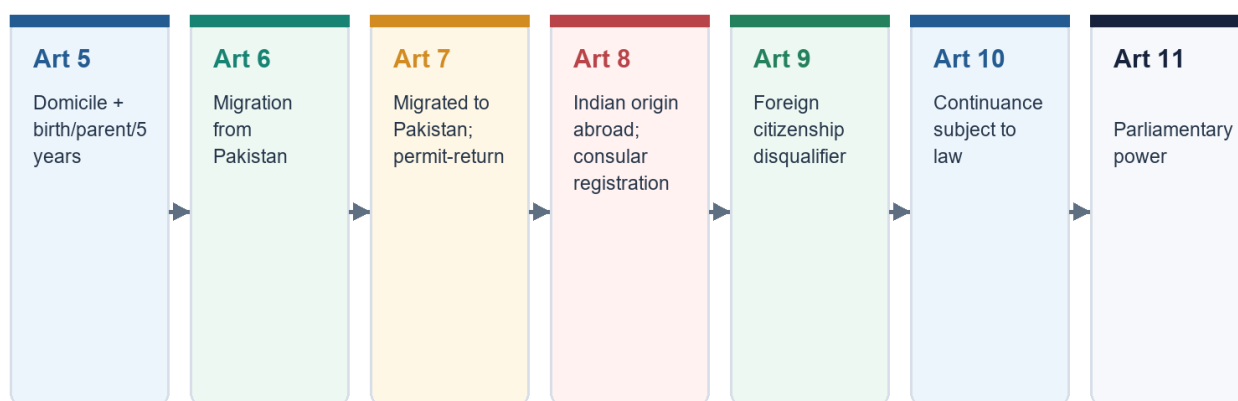
03. Why Articles 5-11 are transitional, but not unimportant

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLES 5-11): Articles 5-8 identified citizens at commencement, Article 9 disqualified voluntary foreign citizenship for the specified commencement routes, Article 10 continued status subject to law, and Article 11 empowered Parliament to build the permanent statutory regime.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Articles 5-11: one constitutional flow

Separate each Article before compressing the scheme



Commencement-focused constitutional rules; post-1950 citizenship is mainly statutory.

Articles 5-11 must be learned separately before the scheme is compressed.

[FACT] Part II of the Constitution does not create a complete permanent code of citizenship. It primarily determines who was a citizen **at the commencement of the Constitution** and then preserves Parliament's power to govern future acquisition and loss.

[ANALYSIS] The scheme has three layers:

1. **Articles 5-8:** affirmative routes to citizenship at commencement.
2. **Article 9:** a disqualifying rule for voluntary foreign citizenship in relation to those commencement routes.
3. **Articles 10-11:** continuity subject to parliamentary law, and Parliament's plenary citizenship competence.

[LIMIT] Articles 5-11 are not obsolete. They remain constitutional text, explain the origin of many statutes, and constrain how commencement claims are understood. But current acquisition and loss are mainly controlled by the Citizenship Act, 1955 under Article 11.

SUBTOPIC CLOSURE FLOW | Why Articles 5-11 are transitional, but not unimportant

1. KEY TERMS / DEFINITIONS

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLES 5-11): Articles 5-8 identified citizens at commencement, Article 9 disqualified voluntary foreign citizenship for the specified commencement routes, Article 10 continued status subject to law, and Article 11 empowered Parliament to build the permanent statutory regime.

2. MECHANISM / ARGUMENT

But current acquisition and loss are mainly controlled by the Citizenship Act, 1955 under Article 11.

3. CONSEQUENCE / CONTRAST

!Articles 5-11 must be learned separately before the scheme is compressed.

4. UPSC TRAP / ANSWER-USE

[FACT] Part II of the Constitution does not create a complete permanent code of citizenship.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLES 5-11): Articles 5-8 identified citizens at commencement, Article 9 disqualified voluntary foreign citizenship for the specified commencement routes, Article 10 continued status subject to law, and Article 11 empowered Parliament to build the permanent statutory regime.

04. Article 5 - domicile plus one of three connecting factors

[FACT] At commencement, a person became a citizen under Article 5 if the person had **domicile in the territory of India** and satisfied at least one of three connections:

1. the person was born in the territory of India; or
2. either parent was born in the territory of India; or
3. the person had been ordinarily resident in India for at least five years immediately preceding commencement.

[ANALYSIS] Domicile is the controlling gateway. Birth, parentage or residence alone did not substitute for it. The Article therefore combined a subjective-permanent-home connection with objective territorial facts.

Trap: Article 5 did not say "anyone residing for five years became a citizen". It required domicile **and** one of the three connections.

SUBTOPIC CLOSURE FLOW | Article 5 - domicile plus one of three connecting factors

1. KEY TERMS / DEFINITIONS

[FACT] At commencement, a person became a citizen under Article 5 if the person had domicile in the territory of India and satisfied at least one of three connections:

2. MECHANISM / ARGUMENT

The Article therefore combined a subjective-permanent-home connection with objective territorial facts.

3. CONSEQUENCE / CONTRAST

The Article therefore combined a subjective-permanent-home connection with objective territorial facts.

4. UPSC TRAP / ANSWER-USE

Birth, parentage or residence alone did not substitute for it.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: [FACT] At commencement, a person became a citizen under Article 5 if the person had domicile in the territory of India and satisfied at least one of three connections:

05. Article 6 - migrants from Pakistan and the 19 July 1948 divide

Partition migration cut-offs and permit logic

Articles 6 and 7 are date-sensitive, not interchangeable

Article 6 ancestry gate: self/parent/grandparent born in India as defined by the 1935 Act.



Post-19 July registration required six months residence before application; the application had to precede commencement.

Partition migration questions turn on 1 March 1947, 19 July 1948, commencement and the permit-return route.

[FACT] Article 6 begins with an ancestry gate: the person, or either parent or any grandparent, had to be born in India as defined in the Government of India Act, 1935.

[FACT] It then divides migrants from territory now included in Pakistan into two streams:

Migration date	Additional condition
Before 19 July 1948	The person had been ordinarily resident in India since the date of migration.
On or after 19 July 1948	The person had to be registered as a citizen before commencement by an authorised officer, after applying before commencement and showing at least six months' residence immediately before the application.

[ANALYSIS] The date marks the introduction of a permit/registration-controlled phase. UPSC tests the difference between residence since migration and registration after a six-month residence floor.

Trap: The six-month period does not replace the requirement that the application and registration route be completed in the constitutional time-frame before commencement.

SUBTOPIC CLOSURE FLOW | Article 6 - migrants from Pakistan and the 19 July 1948 divide

1. KEY TERMS / DEFINITIONS [FACT] Article 6 begins with an ancestry gate: the person, or either parent or any grandparent, had to be born in India as defined in the Government of India Act, 1935.	2. MECHANISM / ARGUMENT [FACT] Article 6 begins with an ancestry gate: the person, or either parent or any grandparent, had to be born in India as defined in the Government of India Act, 1935.	3. CONSEQUENCE / CONTRAST [FACT] It then divides migrants from territory now included in Pakistan into two streams:	4. UPSC TRAP / ANSWER-USE Trap: The six-month period does not replace the requirement that the application and registration route be completed in the constitutional time-frame before commencement.
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: !Partition migration questions turn on 1 March 1947, 19 July 1948, commencement and the permit-return route.

06. Article 7 - migration to Pakistan after 1 March 1947 and the permit-return exception

[FACT] Article 7 overrides Articles 5 and 6 for a person who migrated from India to territory now included in Pakistan **after 1 March 1947**: such a person was not deemed an Indian citizen.

[FACT] The exception covers a person who later returned to India under a permit for **resettlement or permanent return**. For Article 6(b), that person is treated as having migrated to India after 19 July 1948 and must use the registration route.

[ANALYSIS] Article 7 is not a simple permanent ban on every returnee. Its structure is exclusion plus a controlled return-and-registration channel.

Trap: A temporary visit permit is not the constitutional expression. The Article speaks of a permit for resettlement or permanent return.

SUBTOPIC CLOSURE FLOW | Article 7 - migration to Pakistan after 1 March 1947 and the permit-return exception

1. KEY TERMS / DEFINITIONS [FACT] Article 7 overrides Articles 5 and 6 for a person who migrated from India to territory now included in Pakistan after 1 March 1947: such a person was not deemed an Indian citizen.	2. MECHANISM / ARGUMENT [FACT] The exception covers a person who later returned to India under a permit for resettlement or permanent return.	3. CONSEQUENCE / CONTRAST For Article 6(b), that person is treated as having migrated to India after 19 July 1948 and must use the registration route.	4. UPSC TRAP / ANSWER-USE [FACT] Article 7 overrides Articles 5 and 6 for a person who migrated from India to territory now included in Pakistan after 1 March 1947: such a person was not deemed an Indian citizen.
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: [FACT] Article 7 overrides Articles 5 and 6 for a person who migrated from India to territory now included in Pakistan after 1 March 1947: such a person was not deemed an Indian citizen.

07. Article 8 - persons of Indian origin ordinarily resident outside India

[FACT] Article 8 covers a person ordinarily residing outside India if that person, or either parent or any grandparent, was born in India as defined in the Government of India Act, 1935, and the person was registered as an Indian citizen by an Indian diplomatic or consular representative.

[FACT] The application could be made before or after commencement, subject to the Government of India's prescribed form and manner.

[ANALYSIS] Article 8 is the Constitution's original diaspora bridge. It should not be confused with modern OCI, which is a statutory foreign-national card status and not citizenship.

SUBTOPIC CLOSURE FLOW | Article 8 - persons of Indian origin ordinarily resident outside India

1. KEY TERMS / DEFINITIONS

[FACT] Article 8 covers a person ordinarily residing outside India if that person, or either parent or any grandparent, was born in India as defined in the Government of India Act, 1935, and the person was registered as an Indian citizen by an Indian diplomatic or consular representative.

2. MECHANISM / ARGUMENT

[FACT] Article 8 covers a person ordinarily residing outside India if that person, or either parent or any grandparent, was born in India as defined in the Government of India Act, 1935, and the person was registered as an Indian citizen by an Indian diplomatic or consular representative.

3. CONSEQUENCE / CONTRAST

[ANALYSIS] Article 8 is the Constitution's original diaspora bridge.

4. UPSC TRAP / ANSWER-USE

It should not be confused with modern OCI, which is a statutory foreign-national card status and not citizenship.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: [FACT] Article 8 covers a person ordinarily residing outside India if that person, or either parent or any grandparent, was born in India as defined in the Government of India Act, 1935, and the person was registered as an Indian citizen by an Indian diplomatic or consular representative.

08. Article 9 - the commencement-context foreign-citizenship disqualifier

[FACT] Article 9 says that no person shall be a citizen of India by virtue of Article 5, or be deemed a citizen under Article 6 or Article 8, if the person has voluntarily acquired the citizenship of a foreign State.

[LIMIT] The most accurate formulation is contextual: Article 9 directly qualifies the commencement routes in Articles 5, 6 and 8. It should not be quoted as if it alone is a self-executing universal code for every later dual-nationality problem.

[FACT] The present single-citizenship result is produced by Article 9 read with Parliament's Citizenship Act framework, especially Section 9 termination on voluntary acquisition of foreign citizenship. OCI does not alter that result because an OCI cardholder remains a foreign national.

SUBTOPIC CLOSURE FLOW | Article 9 - the commencement-context foreign-citizenship disqualifier

1. KEY TERMS / DEFINITIONS

[FACT] Article 9 says that no person shall be a citizen of India by virtue of Article 5, or be deemed a citizen under Article 6 or Article 8, if the person has voluntarily acquired the citizenship of a foreign State.

2. MECHANISM / ARGUMENT

[FACT] Article 9 says that no person shall be a citizen of India by virtue of Article 5, or be deemed a citizen under Article 6 or Article 8, if the person has voluntarily acquired the citizenship of a foreign State.

3. CONSEQUENCE / CONTRAST

[FACT] The present single-citizenship result is produced by Article 9 read with Parliament's Citizenship Act framework, especially Section 9 termination on voluntary acquisition of foreign citizenship.

4. UPSC TRAP / ANSWER-USE

It should not be quoted as if it alone is a self-executing universal code for every later dual-nationality problem.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: [FACT] Article 9 says that no person shall be a citizen of India by virtue of Article 5, or be deemed a citizen under Article 6 or Article 8, if the person has voluntarily acquired the citizenship of a foreign State.

09. Article 10 - continuance subject to parliamentary law

[FACT] Every person who is or is deemed to be a citizen under the preceding provisions continues as a citizen, **subject to the provisions of any law made by Parliament.**

[ANALYSIS] Article 10 protects continuity but expressly rejects immutability. Citizenship can be regulated or lost under a valid parliamentary law.

SUBTOPIC CLOSURE FLOW | Article 10 - continuance subject to parliamentary law

1. KEY TERMS / DEFINITIONS

[FACT] Every person who is or is deemed to be a citizen under the preceding provisions continues as a citizen, subject to the provisions of any law made by Parliament.

2. MECHANISM / ARGUMENT

[FACT] Every person who is or is deemed to be a citizen under the preceding provisions continues as a citizen, subject to the provisions of any law made by Parliament.

3. CONSEQUENCE / CONTRAST

Citizenship can be regulated or lost under a valid parliamentary law.

4. UPSC TRAP / ANSWER-USE

Answer-use: [FACT] Every person who is or is deemed to be a citizen under the preceding provisions continues as a citizen, subject to the provisions of any law made by Parliament.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: [FACT] Every person who is or is deemed to be a citizen under the preceding provisions continues as a citizen, subject to the provisions of any law made by Parliament.

10. Article 11 - Parliament's citizenship power

[FACT] Article 11 declares that the preceding provisions do not detract from Parliament's power to make law concerning acquisition and termination of citizenship and all other citizenship matters.

[FACT] Parliament exercised that power through the Citizenship Act, 1955.

[LIMIT] Citizenship is therefore a constitutional status predominantly regulated by statute; it is not itself enumerated as a Fundamental Right. That does not make citizenship decisions immune from Articles 14, 21 or judicial review.

SUBTOPIC CLOSURE FLOW | Article 11 - Parliament's citizenship power

1. KEY TERMS / DEFINITIONS

[FACT] Article 11 declares that the preceding provisions do not detract from Parliament's power to make law concerning acquisition and termination of citizenship and all other citizenship matters.

2. MECHANISM / ARGUMENT

[FACT] Parliament exercised that power through the Citizenship Act, 1955.

3. CONSEQUENCE / CONTRAST

[LIMIT] Citizenship is therefore a constitutional status predominantly regulated by statute; it is not itself enumerated as a Fundamental Right.

4. UPSC TRAP / ANSWER-USE

[FACT] Article 11 declares that the preceding provisions do not detract from Parliament's power to make law concerning acquisition and termination of citizenship and all other citizenship matters.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: [FACT] Article 11 declares that the preceding provisions do not detract from Parliament's power to make law concerning acquisition and termination of citizenship and all other citizenship matters.

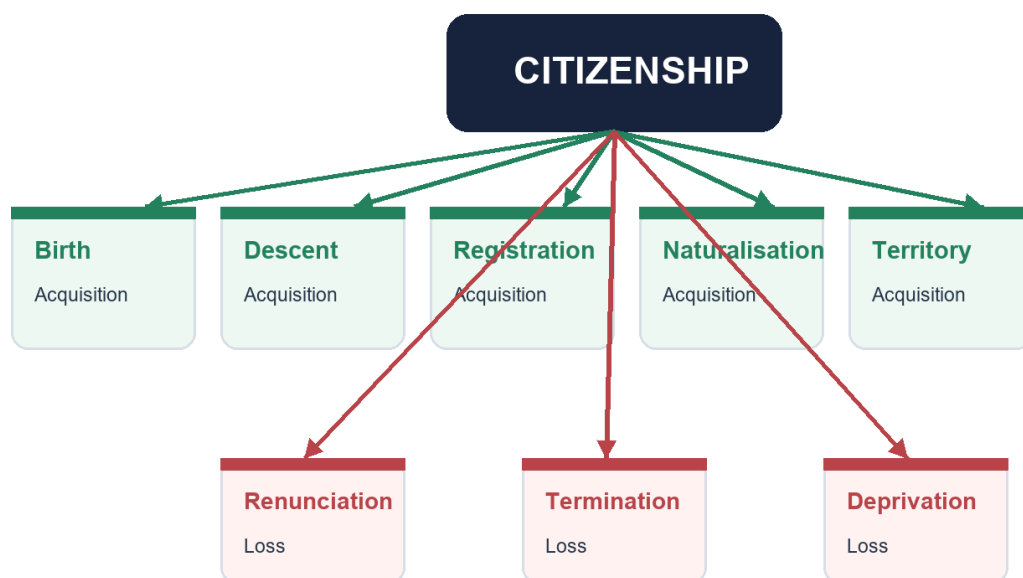
11. Citizenship Act, 1955 - the statutory architecture

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ACQUISITION / LOSS): The Citizenship Act, 1955 creates five acquisition routes—birth, descent, registration, naturalisation and incorporation of territory—and three distinct loss routes—renunciation, termination and category-limited deprivation—each with its own trigger and safeguards.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Citizenship Act, 1955: acquisition and loss tree

Five doors in; three statutory exits



The Act creates five acquisition routes and three loss routes.

Memory hook: Acquisition = **B-D-R-N-I**: Birth, Descent, Registration, Naturalisation, Incorporation. Loss = **R-T-D**: Renunciation, Termination, Deprivation.

Route	Character	Main control
Birth	Place + date + parental status	Section 3
Descent	Birth abroad + citizen parent + later registration controls	Section 4
Registration	Listed categories, application and residence/oath conditions	Section 5
Naturalisation	General alien route through Third Schedule qualifications	Section 6
Incorporation of territory	Government order for persons connected with newly incorporated territory	Section 7

[FACT] "Illegal migrant" is a defined statutory category. The definition generally covers a foreigner who entered without valid travel authority or remained beyond the permitted period. CAA 2019 inserted a proviso for its specified class, subject to the statutory exemptions.

SUBTOPIC CLOSURE FLOW Citizenship Act, 1955 - the statutory architecture			
1. KEY TERMS / DEFINITIONS ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ACQUISITION / LOSS): The Citizenship Act, 1955 creates five acquisition routes—birth, descent, registration, naturalisation and incorporation of territory—and three distinct loss routes—renunciation, termination and category-limited deprivation—each with its own trigger and safeguards.	2. MECHANISM / ARGUMENT ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ACQUISITION / LOSS): The Citizenship Act, 1955 creates five acquisition routes—birth, descent, registration, naturalisation and incorporation of territory—and three distinct loss routes—renunciation, termination and category-limited deprivation—each with its own trigger and safeguards.	3. CONSEQUENCE / CONTRAST !The Act creates five acquisition routes and three loss routes.	4. UPSC TRAP / ANSWER-USE Answer-use: ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ACQUISITION / LOSS): The Citizenship Act, 1955 creates five acquisition routes—birth, descent, registration, naturalisation and incorporation of territory—and three distinct loss routes—renunciation, termination and category-limited deprivation—each with its own trigger and safeguards.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ACQUISITION / LOSS): The Citizenship Act, 1955 creates five acquisition routes—birth, descent, registration, naturalisation and incorporation of territory—and three distinct loss routes—renunciation, termination and category-limited deprivation—each with its own trigger and safeguards.			

12. Citizenship by birth - three periods, not one rule

Birth and descent: statutory date-threshold ladder

The parent rule tightens across time

BIRTH IN INDIA

26 Jan 1950-before 1 Jul 1987: place of birth suffices.
 1 Jul 1987-before 3 Dec 2004: either parent citizen.
 From 3 Dec 2004: both parents citizens OR one citizen + other not illegal migrant.
 Diplomatic-immunity and enemy-occupation exceptions apply.

DESCENT OUTSIDE INDIA

26 Jan 1950-before 10 Dec 1992: father citizen.
 From 10 Dec 1992: either parent citizen.
 From 3 Dec 2004: consular registration within one year (or later permission), plus statutory undertaking/foreign-passport controls.

Birth and descent rules changed at different statutory dates.

Date of birth in India	Citizenship rule
26 January 1950 to before 1 July 1987	Citizen by birth, subject to Section 3(2) exceptions; parental citizenship is not required.
1 July 1987 to before 3 December 2004	Citizen if either parent was an Indian citizen at birth.
On or after 3 December 2004	Citizen if both parents were citizens, or one parent was a citizen and the other was not an illegal migrant at birth.

[FACT] Section 3(2) excludes:

- a birth where a parent possessed diplomatic immunity as an accredited envoy and was not an Indian citizen; and
- a birth where a parent was an enemy alien and the birth occurred in a place then under enemy occupation.

[LIMIT] A birth certificate proves facts of birth; it does not, by itself, answer the parental-status conditions applicable after 1987/2004.

Close-option trap: "Born in India equals citizen" is safely true only for the first statutory period, and even that period remains subject to Section 3(2).

SUBTOPIC CLOSURE FLOW | Citizenship by birth - three periods, not one rule

1. KEY TERMS / DEFINITIONS

[LIMIT] A birth certificate proves facts of birth; it does not, by itself, answer the parental-status conditions applicable after 1987/2004.

2. MECHANISM / ARGUMENT

[LIMIT] A birth certificate proves facts of birth; it does not, by itself, answer the parental-status conditions applicable after 1987/2004.

3. CONSEQUENCE / CONTRAST

a birth where a parent was an enemy alien and the birth occurred in a place then under enemy occupation.

4. UPSC TRAP / ANSWER-USE

a birth where a parent possessed diplomatic immunity as an accredited envoy and was not an Indian citizen; and

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: !Birth and descent rules changed at different statutory dates.

13. Citizenship by descent - gender change, registration and foreign-passport controls

Birth outside India	Parent rule
26 January 1950 to before 10 December 1992	Father had to be an Indian citizen at the time of birth.
On or after 10 December 1992	Either parent may supply the citizenship link.
On or after 3 December 2004	Consular registration within one year is required, unless the Central Government permits later registration.

[FACT] For the post-3 December 2004 period, the statutory application is accompanied by a parental undertaking that the minor does not hold the passport of another country.

[FACT] A minor who is an Indian citizen by descent and also a citizen of another country must comply with the Act's renunciation requirement within six months of attaining full age, failing which Indian citizenship ceases.

[ANALYSIS] The descent route shows why parentage, date, registration and foreign nationality must be checked together. "One citizen parent" is an incomplete answer after 2004.

SUBTOPIC CLOSURE FLOW | Citizenship by descent - gender change, registration and foreign-passport controls

1. KEY TERMS / DEFINITIONS

[FACT] For the post-3 December 2004 period, the statutory application is accompanied by a parental undertaking that the minor does not hold the passport of another country.

2. MECHANISM / ARGUMENT

[FACT] For the post-3 December 2004 period, the statutory application is accompanied by a parental undertaking that the minor does not hold the passport of another country.

3. CONSEQUENCE / CONTRAST

[ANALYSIS] The descent route shows why parentage, date, registration and foreign nationality must be checked together.

4. UPSC TRAP / ANSWER-USE

[FACT] For the post-3 December 2004 period, the statutory application is accompanied by a parental undertaking that the minor does not hold the passport of another country.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: [FACT] For the post-3 December 2004 period, the statutory application is accompanied by a parental undertaking that the minor does not hold the passport of another country.

14. Citizenship by registration - listed categories and exact residence logic

[FACT] Section 5 is discretionary ("may register") and excludes an illegal migrant unless the CAA proviso/Section 6B framework applies. Major categories include:

Section 5(1) category	Key condition
Person of Indian origin ordinarily resident in India	Seven years under the statutory calculation.
Person of Indian origin ordinarily resident outside undivided India	No seven-year Indian-residence phrase in clause (b).
Person married to an Indian citizen	Seven years' ordinary residence in India.
Minor child of Indian citizens	Registration route for the minor.
Full-age person whose parents are registered under specified provisions	Listed parent-status route.
Person who or either parent was earlier a citizen of independent India	Twelve months' ordinary residence immediately before application.
OCI cardholder for five years	Twelve months' ordinary residence immediately before application.

[FACT] For the seven-year clauses (person of Indian origin resident in India and spouse), the Act's calculation is:

- residence throughout the twelve months immediately before application; plus
- at least six years' residence during the eight years preceding those twelve months.

[FACT] A full-age applicant must take the oath of allegiance. Registration is not an automatic consequence of marriage, Indian ancestry or possession of an OCI card.

Trap: "Spouse of a citizen becomes a citizen on marriage." Wrong. Marriage creates eligibility for a statutory application route; residence, scrutiny, registration and oath remain.

SUBTOPIC CLOSURE FLOW | Citizenship by registration - listed categories and exact residence logic

1. KEY TERMS / DEFINITIONS [FACT] Section 5 is discretionary ("may register") and excludes an illegal migrant unless the CAA proviso/Section 6B framework applies.	2. MECHANISM / ARGUMENT residence throughout the twelve months immediately before application; plus	3. CONSEQUENCE / CONTRAST residence throughout the twelve months immediately before application; plus	4. UPSC TRAP / ANSWER-USE Registration is not an automatic consequence of marriage, Indian ancestry or possession of an OCI card.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: [FACT] Section 5 is discretionary ("may register") and excludes an illegal migrant unless the CAA proviso/Section 6B framework applies.			

15. Citizenship by naturalisation - Third Schedule, waiver and the CAA modification

[FACT] Section 6 permits the Central Government to grant a certificate to a full-age, capable applicant who is not an illegal migrant and satisfies the Third Schedule.

General qualification	Exact exam formulation
Immediate period	Residence in India or government service, or a combination, throughout the twelve months immediately preceding application, subject to a recorded relaxation up to thirty days in special circumstances.
Aggregate period	During the fourteen years preceding that twelve-month period, aggregate residence/service of at least eleven years.
Character	Good character.
Language	Adequate knowledge of an Eighth Schedule language.
Future connection	Intention to reside in India or continue specified government/international-organisation/India-established-body service.
Reciprocity	Applicant must not belong to a country that prevents Indians by law or practice from naturalising there.

[FACT] The Central Government may waive all or any Third Schedule conditions for distinguished service to science, philosophy, art, literature, world peace or human progress generally.

[FACT] For the CAA-specified class, the Third Schedule's **aggregate eleven years** is read as **five years**. The separate twelve-month immediately preceding condition is not deleted.

High-value trap: "CAA reduces naturalisation to five years" is imprecise. It reduces the aggregate requirement from eleven to five for the specified class; the immediate twelve-month limb remains.

SUBTOPIC CLOSURE FLOW | Citizenship by naturalisation - Third Schedule, waiver and the CAA modification

1. KEY TERMS / DEFINITIONS [FACT] Section 6 permits the Central Government to grant a certificate to a full-age, capable applicant who is not an illegal migrant and satisfies the Third Schedule.	2. MECHANISM / ARGUMENT [FACT] The Central Government may waive all or any Third Schedule conditions for distinguished service to science, philosophy, art, literature, world peace or human progress generally.	3. CONSEQUENCE / CONTRAST [FACT] For the CAA-specified class, the Third Schedule's aggregate eleven years is read as five years.	4. UPSC TRAP / ANSWER-USE [FACT] Section 6 permits the Central Government to grant a certificate to a full-age, capable applicant who is not an illegal migrant and satisfies the Third Schedule.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: [FACT] Section 6 permits the Central Government to grant a certificate to a full-age, capable applicant who is not an illegal migrant and satisfies the Third Schedule.			

16. Citizenship by incorporation of territory

[FACT] If territory becomes part of India, Section 7 authorises the Central Government, by Gazette order, to specify the persons who become citizens because of their connection with that territory and the date from which citizenship operates.

[ANALYSIS] This is a collective, territory-linked route, unlike an individual naturalisation application. The Citizenship (Pondicherry) Order, 1962 is the standard illustration.

SUBTOPIC CLOSURE FLOW Citizenship by incorporation of territory			
1. KEY TERMS / DEFINITIONS [FACT] If territory becomes part of India, Section 7 authorises the Central Government, by Gazette order, to specify the persons who become citizens because of their connection with that territory and the date from which citizenship operates.	2. MECHANISM / ARGUMENT [FACT] If territory becomes part of India, Section 7 authorises the Central Government, by Gazette order, to specify the persons who become citizens because of their connection with that territory and the date from which citizenship operates.	3. CONSEQUENCE / CONTRAST [ANALYSIS] This is a collective, territory-linked route, unlike an individual naturalisation application.	4. UPSC TRAP / ANSWER-USE Answer-use: [FACT] If territory becomes part of India, Section 7 authorises the Central Government, by Gazette order, to specify the persons who become citizens because of their connection with that territory and the date from which citizenship operates.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: [FACT] If territory becomes part of India, Section 7 authorises the Central Government, by Gazette order, to specify the persons who become citizens because of their connection with that territory and the date from which citizenship operates.			

17. Loss of citizenship - renunciation, termination and deprivation

Mode	Trigger	Decision structure
Renunciation, Section 8	Full-age capable citizen makes a declaration	Effective upon registration; registration may be withheld during war.
Termination, Section 9	Voluntary acquisition of another country's citizenship	Citizenship ceases, subject to the statutory wartime proviso and determination rules.
Deprivation, Section 10	Central Government order against defined categories on listed grounds	Notice, public-good satisfaction and inquiry safeguards apply.

Renunciation

[FACT] When a person renounces citizenship, every minor child of that person also ceases to be a citizen. Such a child may resume Indian citizenship by declaration within one year after attaining full age.

Termination

[FACT] Termination follows voluntary acquisition of foreign citizenship. If the fact, time or manner of foreign acquisition is disputed, it is determined by the prescribed authority and evidence rules.

Deprivation - category gate first, grounds second

[FACT] Section 10 does **not** create a free-standing power to deprive every citizen on the listed grounds. Its category gate covers:

- a citizen by naturalisation;
- a citizen by virtue only of Article 5(c), the commencement five-year-residence limb; and
- a citizen by registration **other than** Article 6(b)(ii) registration and Section 5(1)(a) registration.

[LIMIT] Citizens by birth and descent do not fall within Section 10(1)'s deprivation category. The common shorthand "deprivation applies to registered and naturalised citizens" is incomplete because the Act contains express inclusions and exclusions.

[FACT] Once the category gate is met, the listed grounds are:

1. fraud, false representation or concealment in registration/naturalisation;
2. disloyalty or disaffection towards the Constitution by act or speech;
3. unlawful enemy trading/communication during war;
4. imprisonment for at least two years within five years after registration or naturalisation; or
5. seven years' continuous ordinary residence abroad without falling within the student/government or qualifying international-organisation exceptions and without annual consular registration of the intention to retain citizenship.

[FACT] The Central Government must also be satisfied that continued citizenship is not conducive to the public good. Written notice and a committee-of-inquiry route apply as specified by Section 10.

Trap: Renunciation is voluntary declaration; termination follows foreign citizenship; deprivation is a compulsory, category-limited government order.

SUBTOPIC CLOSURE FLOW | Loss of citizenship - renunciation, termination and deprivation

1. KEY TERMS / DEFINITIONS

[FACT] When a person renounces citizenship, every minor child of that person also ceases to be a citizen.

2. MECHANISM / ARGUMENT

Such a child may resume Indian citizenship by declaration within one year after attaining full age.

3. CONSEQUENCE / CONTRAST

[FACT] Termination follows voluntary acquisition of foreign citizenship.

4. UPSC TRAP / ANSWER-USE

[FACT] Section 10 does not create a free-standing power to deprive every citizen on the listed grounds.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: [FACT] When a person renounces citizenship, every minor child of that person also ceases to be a citizen.

18. Assam Accord, Section 6A and the NRC cut-off

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (SECTION 6A): Section 6A is an Assam-specific route to Indian citizenship: pre-1966 entrants are deemed citizens, the 1966–before-25-March-1971 stream faces detection, registration and ten years without electoral-roll inclusion, and post-cut-off entrants receive no protection.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Assam Accord, Section 6A and NRC timeline

Do not mix the 1971 Assam cut-off with the CAA 2014 cut-off

Before 1 Jan 1966

Deemed citizens from 1 Jan 1966

1 Jan 1966-24 Mar 1971

Detection -> registration
-> 10-year vote exclusion

25 Mar 1971 onward

No Section 6A protection

17 Oct 2024

SC 4:1 upholds Section 6A



NRC/Assam Accord reference point: midnight of 24 March 1971; statutory wording uses before 25 March 1971.

Section 6A creates pre-1966, 1966-1971 and post-1971 streams.

[FACT] Section 6A was inserted by the Citizenship (Amendment) Act, 1985 to implement the citizenship component of the Assam Accord.

Stream	Statutory consequence
Indian-origin persons who came from the specified territory to Assam before 1 January 1966 and remained ordinarily resident	Deemed citizens from 1 January 1966, subject to Section 6A.
Indian-origin persons who came on/after 1 January 1966 but before 25 March 1971, remained ordinarily resident and were detected as foreigners	Must register; electoral-roll name is deleted; citizenship follows after ten years from detection.
During the ten-year period	Same rights and obligations as a citizen, including passport eligibility, but no electoral-roll inclusion.

Stream	Statutory consequence
Entry on or after 25 March 1971	No Section 6A protection.

[FACT] The familiar Assam/NRC cut-off is **midnight of 24 March 1971**, expressed in Section 6A as entry **before 25 March 1971**.

[LIMIT] NRC and CAA use different dates and different legal purposes:

- Assam Accord/NRC reference: 24 March 1971.
- CAA entry cut-off: 31 December 2014.

[ANALYSIS] Section 6A is an instance of constitutional-statutorily authorised asymmetry: a national citizenship law creates an Assam-specific historical settlement. It does not create Assam citizenship.

SUBTOPIC CLOSURE FLOW Assam Accord, Section 6A and the NRC cut-off			
1. KEY TERMS / DEFINITIONS ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (SECTION 6A): Section 6A is an Assam-specific route to Indian citizenship: pre-1966 entrants are deemed citizens, the 1966–before-25-March-1971 stream faces detection, registration and ten years without electoral-roll inclusion, and post-cut-off entrants receive no protection.	2. MECHANISM / ARGUMENT !Section 6A creates pre-1966, 1966–1971 and post-1971 streams.	3. CONSEQUENCE / CONTRAST !Section 6A creates pre-1966, 1966–1971 and post-1971 streams.	4. UPSC TRAP / ANSWER-USE It does not create Assam citizenship.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (SECTION 6A): Section 6A is an Assam-specific route to Indian citizenship: pre-1966 entrants are deemed citizens, the 1966–before-25-March-1971 stream faces detection, registration and ten years without electoral-roll inclusion, and post-cut-off entrants receive no protection.			

19. In Re: Section 6A (17 October 2024) - the controlling 4:1 judgment

In Re: Section 6A (17 October 2024)

4:1 result, majority validity plus implementation directions

MAJORITY 4

Section 6A valid. Assam/date classification reasonable; no violation of Arts 6, 7, 9, 14, 21, 29, 326 or 355. Post-1971 enforcement inadequate; tribunals and laws need monitored implementation.

SOLE DISSENT

Justice J.B. Pardiwala: valid at enactment but became manifestly arbitrary with time because Section 6A(3) lacks a temporal limit and places detection burden on State; would invalidate prospectively without undoing past grants.

Exam verdict: validity settled by majority; implementation concern is not a holding of invalidity.

The majority upheld Section 6A; the sole dissent would have invalidated it prospectively.

Result and opinions

[FACT] The Constitution Bench result was 4:1:

- Chief Justice D.Y. Chandrachud wrote a concurring opinion upholding Section 6A.
- Justice Surya Kant wrote for himself, Justice M.M. Sundresh and Justice Manoj Misra, also upholding it and issuing implementation directions.

- Justice J.B. Pardiwala dissented.

Majority reasoning

[FACT] The majority conclusions included:

- Articles 6 and 7 fixed the constitutional commencement framework; Article 11 allowed Parliament to legislate later for persons outside that temporal coverage.
- Assam and the 24 March 1971 cut-off formed a reasonable classification linked to the special scale and impact of migration and the Bangladesh-war context.
- Section 6A did not violate Articles 6, 7, 9, 14, 21, 29, 326 or 355.
- Article 29(1) protects the ability of a section of citizens to conserve language, script and culture; the petitioners had not proved that Section 6A itself destroyed that ability.
- The provision was not invalid merely because Section 6A(2) uses deemed citizenship without a registration procedure.
- Article 355 was not treated as an independent standard for striking down the law.

[FACT] Justice Surya Kant's opinion separated **validity** from **implementation**. It held the law valid but found the machinery inadequate, noted post-1971 enforcement failures, called for effective use of immigration laws and tribunals, and directed that a bench monitor implementation.

[LIMIT] Figures recorded in the judgment about pending tribunal cases or unfenced border were evidence before the Court at that time. They should not be presented as timeless current statistics.

Sole dissent

[FACT] Justice Pardiwala accepted that the Assam classification was not unconstitutional when enacted in 1985, but concluded that Section 6A(3) had become manifestly arbitrary with the passage of time because:

- it lacked a temporal end-point for detecting and processing the 1966-1971 stream;
- the burden of detection lay almost entirely on the State;
- the mechanism frustrated timely detection, electoral deletion and regularisation.

[FACT] He would have declared Section 6A invalid **prospectively**, protected citizenship already granted and preserved specified pending proceedings.

[ANALYSIS] The exam-safe conclusion is: Section 6A is valid because the majority controls. The dissent is valuable for implementation design and temporal-reasonableness analysis, not for stating the law's present validity.

SUBTOPIC CLOSURE FLOW | In Re: Section 6A (17 October 2024) - the controlling 4:1 judgment

1. KEY TERMS / DEFINITIONS

[FACT] The Constitution Bench result was 4:1:

2. MECHANISM / ARGUMENT

The provision was not invalid merely because Section 6A(2) uses deemed citizenship without a registration procedure.

3. CONSEQUENCE / CONTRAST

[FACT] The Constitution Bench result was 4:1:

4. UPSC TRAP / ANSWER-USE

Section 6A did not violate Articles 6, 7, 9, 14, 21, 29, 326 or 355.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: !The majority upheld Section 6A; the sole dissent would have invalidated it prospectively.

20. OCI and PIO evolution - diaspora connection without citizenship

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (OCI): OCI is calibrated diaspora access for a foreign national—not dual citizenship—because notified mobility and socio-economic facilities coexist with no vote, no Indian passport and no claim to citizen-reserved public office.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Citizen, NRI and OCI: status comparison

OCI is a foreign national with statutory facilities, not citizenship

CITIZEN	NRI	OCI	PIO LEGACY
Indian citizenship; vote/office subject to law; Indian passport ordinarily.	Indian citizen residing abroad; citizenship continues unless lost under law.	Foreign national; lifelong multiple-entry visa; no vote/public office; notified parity only.	PIO card scheme merged into OCI framework in 2015.

OCI defaults to foreigner treatment outside specifically notified rights and RBI/FEMA privileges.

Citizen, NRI and OCI are distinct statuses; PIO is now a legacy card category.

Evolution

Stage	Development
2000-2002	High Level Committee on the Indian Diaspora under L.M. Singhvi studied diaspora engagement.
2003 amendment	Introduced the statutory OCI framework and removed Commonwealth-citizenship provisions.
2005 amendment	Expanded OCI eligibility beyond the original limited-country design, subject to statutory exclusions.
2015 amendment	Recast the status as "OCI Cardholder" and merged the PIO card scheme into the OCI framework.

[FACT] OCI is **not Indian citizenship**, not dual citizenship and not a constitutional status. The 2021 MHA notification expressly describes an OCI cardholder as a foreign national holding a foreign passport.

OCI eligibility and exclusions

[FACT] Section 7A includes specified former citizens/eligible persons, descendants up to great-grandchildren, some minor children and qualifying foreign spouses. A foreign spouse's marriage must have been registered and subsisted continuously for at least two years immediately before application, and security clearance applies.

[FACT] A person who, or whose parent/grandparent/great-grandparent, is or was a citizen of Pakistan or Bangladesh, or another country notified by the Central Government, is excluded from ordinary Section 7A eligibility.

Rights and facilities under the 4 March 2021 notification

[FACT] Notified facilities include:

- multiple-entry lifelong visa for visiting India;
- exemption from FRRO/FRO registration for any length of stay, subject to address/occupation intimation for ordinarily resident OCI cardholders;
- parity with Indian nationals for domestic air tariffs and entry fees at listed public sites;
- parity with NRIs for inter-country adoption, specified entrance-test/NRI or supernumerary seats, non-agricultural immovable property and listed professions.

[FACT] Special permission/permit is required for research; missionary, Tabligh (religious propagation), mountaineering or journalistic activity; specified foreign diplomatic internships/employment; and

protected/restricted/prohibited areas.

[FACT] Outside specifically notified rights and applicable RBI/FEMA privileges, the 2021 notification gives the OCI cardholder the same rights and privileges as a **foreigner**.

Political and public-office restrictions

[FACT] Section 7B denies OCI cardholders:

- Article 16 equality in public employment;
- eligibility to be President, Vice-President, Supreme Court or High Court judge;
- voter registration;
- eligibility for Parliament or State legislatures; and
- appointment to Union/State public services unless specially specified.

Cancellation

[FACT] Section 7D grounds include fraud/concealment, constitutional disaffection, enemy assistance in war, a qualifying two-year sentence within five years, violation of specified law, sovereignty/security/public-interest grounds, and breakdown/breach of the qualifying spouse marriage. A reasonable opportunity of hearing is required.

Status	Citizen?	Vote?	Passport/nationality	Typical India connection
Resident Indian citizen	Yes	If otherwise registered/eligible	Indian	Resides in India
NRI	Yes	Subject to electoral law and registration	Indian	Indian citizen ordinarily abroad
OCI cardholder	No	No	Foreign	Statutory visa and notified facilities
Foreign national without OCI	No	No	Foreign	General foreigner regime

Trap: NRI describes a citizen's residence position; OCI describes a foreign national's statutory card status.

SUBTOPIC CLOSURE FLOW | OCI and PIO evolution - diaspora connection without citizenship

1. KEY TERMS / DEFINITIONS ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (OCI): OCI is calibrated diaspora access for a foreign national—not dual citizenship—because notified mobility and socio-economic facilities coexist with no vote, no Indian passport and no claim to citizen-reserved public office.	2. MECHANISM / ARGUMENT ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (OCI): OCI is calibrated diaspora access for a foreign national—not dual citizenship—because notified mobility and socio-economic facilities coexist with no vote, no Indian passport and no claim to citizen-reserved public office.	3. CONSEQUENCE / CONTRAST !Citizen, NRI and OCI are distinct statuses; PIO is now a legacy card category.	4. UPSC TRAP / ANSWER-USE ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (OCI): OCI is calibrated diaspora access for a foreign national—not dual citizenship—because notified mobility and socio-economic facilities coexist with no vote, no Indian passport and no claim to citizen-reserved public office.
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (OCI): OCI is calibrated diaspora access for a foreign national—not dual citizenship—because notified mobility and socio-economic facilities coexist with no vote, no Indian passport and no claim to citizen-reserved public office.

21. Citizenship (Amendment) Act, 2019 and Rules 2024 - exact operation

CAA 2019 + Rules 2024: eligibility and exclusions

A facilitated application route, not automatic citizenship



Naturalisation change: aggregate 11 years becomes 5; the separate preceding 12-month condition remains.

CAA eligibility is defined by community, country, entry date, exemption and territorial exclusions.

Exact eligible statutory class

[FACT] The proviso to Section 2(1)(b), read with Section 6B, addresses a person who:

1. belongs to the **Hindu, Sikh, Buddhist, Jain, Parsi or Christian** community;
2. is from **Afghanistan, Bangladesh or Pakistan**;
3. entered India **on or before 31 December 2014**; and
4. was exempted by the Central Government under the specified Passport (Entry into India) Act / Foreigners Act instruments.

[LIMIT] "Religious persecution" is central to the legislative justification and government narrative, but the operative statutory class is expressed through community, country, date and exemption. Do not invent an additional case-by-case statutory phrase that is absent from the operative proviso.

What Section 6B does

[FACT] The Central Government or specified authority may grant registration or naturalisation after application and fulfilment of Section 5 or Third Schedule conditions.

[FACT] A person granted a certificate under Section 6B is deemed a citizen from the **date of entry into India**.

[FACT] Pending proceedings concerning illegal migration or citizenship abate **on conferment of citizenship**, not merely on filing an application.

[LIMIT] CAA does not automatically turn every member of the six communities into a citizen. Eligibility, application, documentary verification, oath and decision remain.

Territorial exclusions

[FACT] Section 6B does not apply to:

- tribal areas of Assam, Meghalaya, Mizoram or Tripura included in the Sixth Schedule; and
- areas covered by "the Inner Line" notified under the Bengal Eastern Frontier Regulation, 1873.

[LIMIT] Use the statutory description. Do not convert it into a loose claim that the whole Northeast is excluded.

Naturalisation residence change

[FACT] For the specified class, the Third Schedule's aggregate period in the preceding fourteen-year window is read as **not less than five years** instead of eleven. The immediate twelve-month condition remains.

Rules 2024 process

[FACT] The Rules create an electronic workflow:

1. application to the Empowered Committee through the District Level Committee;
2. District Level Committee document verification;
3. personal appearance and oath of allegiance before the designated officer;
4. electronic forwarding to the Empowered Committee;
5. scrutiny, inquiry and fit-and-proper assessment by the Empowered Committee; and
6. digital certificate, with hard copy if opted for.

[FACT] Schedule IA lists documents connecting the applicant to Afghanistan, Bangladesh or Pakistan. Schedule IB lists documents evidencing entry into India on or before 31 December 2014. The latter can include government records such as licence, ration, school, court, bank, utility, employment and other dated records.

[LIMIT] Aadhaar appears in Schedule IB as one possible document to evidence entry/presence for this specific process. That does not transform Aadhaar into universal proof of Indian citizenship.

Operational status

[CURRENT] PIB recorded the first set of certificates in New Delhi on 15 May 2024, followed later that month by certificates through empowered committees in other States. This confirms operation; it does not resolve the constitutional challenge.

SUBTOPIC CLOSURE FLOW Citizenship (Amendment) Act, 2019 and Rules 2024 - exact operation			
1. KEY TERMS / DEFINITIONS !CAA eligibility is defined by community, country, entry date, exemption and territorial exclusions.	2. MECHANISM / ARGUMENT !CAA eligibility is defined by community, country, entry date, exemption and territorial exclusions.	3. CONSEQUENCE / CONTRAST 1. belongs to the Hindu, Sikh, Buddhist, Jain, Parsi or Christian community;	4. UPSC TRAP / ANSWER-USE Do not invent an additional case-by-case statutory phrase that is absent from the operative proviso.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: !CAA eligibility is defined by community, country, entry date, exemption and territorial exclusions.			

21A. Post-2024 current-law control: immigration exemption is not citizenship

[FACT] The Immigration and Foreigners Act, 2025 commenced on 1 September 2025 and repealed the Passport (Entry into India) Act, 1920, Registration of Foreigners Act, 1939, Foreigners Act, 1946 and Immigration (Carriers' Liability) Act, 2000. Its Section 36 savings clause preserves prior rules, orders and actions so far as consistent, while Section 34 keeps other laws operative.

[FACT] The Immigration and Foreigners (Exemption) Order, 2025 protects Hindu, Sikh, Buddhist, Jain, Parsi and Christian persons from Afghanistan, Bangladesh and Pakistan who entered on or before 31 December 2024 from specified passport/visa requirements when they were compelled to seek shelter because of religious persecution or fear of it.

[LIMIT] This 2024 date is not a new CAA citizenship cut-off. It is an immigration-law exemption. Section 6B and the proviso to Section 2(1)(b) continue to use 31 December 2014 for the facilitated citizenship class. The 2025 Act/Order neither grants automatic citizenship nor amends the Citizenship Act's acquisition architecture.

UPSC trap: 31 December 2024 now appears in an immigration exemption; 31 December 2014 remains the CAA citizenship-entry cut-off.

22. CAA, Article 14, secularism and Assam - argument tree, not slogan

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (CAA DEBATE): The CAA debate turns on whether a six-community, three-country and 31-December-2014 facilitation is a reasonable humanitarian classification or an under-inclusive religion-coded preference incompatible with Article 14 and secularism.

CONTENT CLASSIFICATION: CORE MAINS

CAA Article 14 argument tree and Mains answer spine

Separate legal test, competing claims, implementation and pending adjudication

CRITIQUE

Religion is an express classifier; excluded persecuted groups/countries raise under-inclusion; Assam invokes 1971 settlement; secularism/basic-structure concern.

DEFENCE

Narrow remedial class tied to three neighbours and six minorities; intelligible differentia + humanitarian nexus; no existing citizen loses status; ordinary routes remain.

ANSWER SPINE

- 1 Scope precisely
- 2 Apply Article 14 test
- 3 Present defence and critique
- 4 Add exclusions/rules/Assam
- 5 State operative + sub judice
- 6 Give qualified verdict

A high-scoring CAA answer states the exact class, applies Article 14 and ends with a sub judice qualification.

Article 14 test

[FACT] Article 14 protects persons, including non-citizens. A classification must rest on an intelligible differentia and have a rational nexus with the object. Modern review also examines manifest arbitrariness.

Principal criticism

- [ANALYSIS] Religion is an express part of the eligibility class; critics argue that excluding Muslim sects facing persecution and excluding similarly situated groups in other neighbours makes the classification under-inclusive.
- [ANALYSIS] Because secularism is a basic feature, critics argue that a religion-coded citizenship preference must receive exacting constitutional scrutiny.
- [ANALYSIS] Assam-based challenges stress that the CAA's 2014 date sits uneasily with the Accord's 1971 settlement and may affect indigenous political/cultural protection.
- [ANALYSIS] A refugee law based on individual persecution rather than religion/country categories is offered as a less exclusionary alternative.

Principal defence

- [ANALYSIS] The Government presents the law as a narrow remedial measure for six minorities in three neighbouring countries linked to Partition and state-religion conditions.
- [ANALYSIS] Legislative classification need not solve every hardship at once; the selected class is defended as intelligible and connected to a humanitarian object.
- [FACT] The Act does not remove citizenship from any existing Indian citizen and does not amend the ordinary citizenship routes available under the rest of the Act.
- [ANALYSIS] Territory exclusions and the separate Assam regime are invoked to show legislative accommodation of regional concerns.

Qualified current conclusion

[CURRENT] The Act and Rules are operative. Their constitutional validity is sub judice on the source record used here. The exam-safe conclusion is neither "obviously valid" nor "already unconstitutional", but that the final answer turns on whether the Court accepts the statutory class as a reasonable remedial classification compatible with equality and secularism.

SUBTOPIC CLOSURE FLOW | CAA, Article 14, secularism and Assam - argument tree, not slogan

1. KEY TERMS / DEFINITIONS

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (CAA DEBATE): The CAA debate turns on whether a six-community, three-country and 31-December-2014 facilitation is a reasonable humanitarian classification or an under-inclusive religion-coded preference incompatible with Article 14 and secularism.

2. MECHANISM / ARGUMENT

[ANALYSIS] Because secularism is a basic feature, critics argue that a religion-coded citizenship preference must receive exacting constitutional scrutiny.

3. CONSEQUENCE / CONTRAST

[FACT] Article 14 protects persons, including non-citizens.

4. UPSC TRAP / ANSWER-USE

[ANALYSIS] A refugee law based on individual persecution rather than religion/country categories is offered as a less exclusionary alternative.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (CAA DEBATE):
The CAA debate turns on whether a six-community, three-country and 31-December-2014 facilitation is a reasonable humanitarian classification or an under-inclusive religion-coded preference incompatible with Article 14 and secularism.

23. Citizenship proof and document traps

Document/status	What it can establish	What it cannot universally establish by itself
Aadhaar	Identity/residence under the Aadhaar framework	Citizenship or domicile; the Aadhaar Act expressly denies that inference.
Birth certificate	Place/date/parent details as recorded	Automatic citizenship without applying the relevant Section 3 period and parent rule.
Voter registration/EPIC	Administrative electoral enrolment; law requires citizenship	Conclusive citizenship in every legal proceeding if enrolment itself is disputed or erroneous.
Passport	Strong nationality/travel-document evidence in ordinary administration	An irrebuttable citizenship certificate in every case; the Passports Act also recognises travel documents/passports in limited non-citizen contexts.
Domicile/residence certificate	Local residence or domicile criteria for the issuing purpose	Indian citizenship.
Citizenship certificate	Registration/naturalisation under the Act	Rights outside the status and law under which issued; fraud can trigger statutory consequences.

[ANALYSIS] India does not use one universal card that proves every route of citizenship. The relevant legal route determines the evidence: birth and parental documents, consular registration, citizenship certificate, incorporation order or other statutory records.

Trap: A document may be evidence of a fact relevant to citizenship without itself being citizenship.

SUBTOPIC CLOSURE FLOW | Citizenship proof and document traps

1. KEY TERMS / DEFINITIONS

Trap: A document may be evidence of a fact relevant to citizenship without itself being citizenship.

2. MECHANISM / ARGUMENT

The relevant legal route determines the evidence: birth and parental documents, consular registration, citizenship certificate, incorporation order or other statutory records.

3. CONSEQUENCE / CONTRAST

Trap: A document may be evidence of a fact relevant to citizenship without itself being citizenship.

4. UPSC TRAP / ANSWER-USE

[ANALYSIS] India does not use one universal card that proves every route of citizenship.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: [ANALYSIS] India does not use one universal card that proves every route of citizenship.

24. Prelims close-option laboratory

1. **Articles 5-11:** commencement citizenship plus Parliament's power, not a complete permanent code.
2. **Article 5:** domicile plus birth/parent/five-year residence; not residence alone.
3. **Article 6:** 19 July 1948 separates residence-since-migration from registration.
4. **Article 7:** post-1 March 1947 migration to Pakistan excludes, but permit for resettlement/permanent return opens the post-19 July registration route.
5. **Article 9:** contextual disqualifier for Articles 5, 6 and 8; present single-citizenship law also depends on the 1955 Act.
6. **Birth:** 1950-1987, 1987-2004, post-3 December 2004.
7. **Descent:** father before 10 December 1992; either parent after; registration control after 3 December 2004.
8. **Registration:** marriage/ancestry/OCI creates eligibility, not automatic citizenship.
9. **Naturalisation:** twelve immediate months plus eleven of preceding fourteen; CAA class gets aggregate five, not deletion of immediate twelve.
10. **Deprivation:** category-limited Section 10 power; not applicable to every citizen.
11. **Assam:** before 1966; 1966-before 25 March 1971; post-1971.
12. **OCI:** foreign national, no vote, not dual citizenship.
13. **CAA:** six communities, three countries, on/before 31 December 2014, statutory exemptions, Sixth Schedule/Inner Line exclusions.
14. **Proof:** Aadhaar, residence or voter card is not universal conclusive citizenship proof.

SUBTOPIC CLOSURE FLOW | Prelims close-option laboratory

1. KEY TERMS / DEFINITIONS

Articles 5-11: commencement citizenship plus Parliament's power, not a complete permanent code.

2. MECHANISM / ARGUMENT

Registration: marriage/ancestry/OCI creates eligibility, not automatic citizenship.

3. CONSEQUENCE / CONTRAST

Article 6: 19 July 1948 separates residence-since-migration from registration.

4. UPSC TRAP / ANSWER-USE

Articles 5-11: commencement citizenship plus Parliament's power, not a complete permanent code.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 5-11: commencement citizenship plus Parliament's power, not a complete permanent code.

25. Mains answer architecture and qualified conclusions

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (FINAL VERDICT): Indian citizenship law is constitutionally founded, statutorily administered and judicially reviewable; its legitimacy depends on reconciling equal membership and fraternity with lawful migration control, regional protection and non-arbitrary classification.

CONTENT CLASSIFICATION: CORE MAINS

Answer spine A - "How does the Constitution deal with citizenship?"

1. Define citizenship as membership.
2. State that Articles 5-8 identify commencement citizens.
3. Explain Articles 9 and 10.
4. End the constitutional spine with Article 11.
5. Add the 1955 Act's five acquisition and three loss routes.
6. Conclude: constitutional origin, statutory continuation, judicial-review limits.

Answer spine B - "Single citizenship versus regional protection"

1. Explain one citizenship and one Indian domicile.
2. State the integration rationale.
3. Distinguish residence/local status.
4. Use Articles 16(3), 19(5) and 371 safeguards.
5. Reject the label "State citizenship".

6. Conclude that equal membership can coexist with proportionate territorial protection.

Answer spine C - "CAA and Article 14"

1. Define the exact six-community/three-country/date/exemption class.
2. State the Article 14 test.
3. Present under-inclusion/secularism and Assam objections.
4. Present remedial-classification/no-deprivation defence.
5. Add Rules 2024, territorial exclusions and implementation.
6. State operative + sub judice; give no invented verdict.

Qualified conclusions

- **Constitution-statute conclusion:** "The Constitution supplied the founding membership rules; Article 11 made Parliament the continuing architect, but statutory discretion remains accountable to equality, liberty and judicial review."
- **Single-citizenship conclusion:** "India protects one political membership while permitting residence and region-sensitive safeguards; asymmetry is not a second citizenship."
- **OCI conclusion:** "OCI is durable diaspora access without political membership: a foreign-national status whose benefits exist only to the extent statute and notification grant them."
- **Assam conclusion:** "The 2024 majority settled Section 6A's validity, not its administrative success; legality and implementation must therefore be answered separately."
- **CAA conclusion:** "The Act is operative, but its constitutional legitimacy remains a live Article 14/secularism question; a responsible answer states the exact class, both arguments and the sub judice limit."

BASIC MCQS / REMEDIATION

Forty core diagnostic MCQs

Core MCQ 1. Which one of the following most accurately states the constitutional position of non-citizens?

- A. Articles 14 and 21 protect persons, while Articles 15, 16 and 19 are textually citizen-specific
- B. Every Fundamental Right is confined to citizens
- C. Article 19 protects every person lawfully present in India
- D. Article 14 protects citizens alone, but Article 15 protects all persons

Answer: A. Article 14 uses "person" and Article 21 uses "no person"; Articles 15, 16 and 19 expressly use citizen/citizens. A close option may exploit the false idea that all fundamental rights share one beneficiary formula.

Core MCQ 2. A person claimed citizenship under Article 5 at commencement solely because the person had lived in India for five years. What additional constitutional requirement was indispensable?

- A. Registration by an Indian consulate
- B. Domicile in the territory of India
- C. A permit for resettlement
- D. Descent from a grandparent born in undivided India

Answer: B. Article 5 required domicile plus one of birth, parentage or five years' ordinary residence. Residence alone was not the constitutional gateway.

Core MCQ 3. Which combination correctly describes an Article 6 migrant who came to India from Pakistan on or after 19 July 1948?

- A. Residence since migration alone
- B. Domicile plus five years immediately before commencement
- C. Registration before commencement after an application and at least six months' prior residence
- D. Automatic citizenship after ten years from detection

Answer: C. The post-19 July 1948 stream was registration-controlled. The ten-year detection rule belongs to Section 6A, not Article 6.

Core MCQ 4. Article 7's exception for a person who migrated to Pakistan after 1 March 1947 applies when the person

- A. returns on any tourist or transit permit
- B. has one parent born in India
- C. lives in India for five years after return
- D. returns under a permit for resettlement or permanent return and then uses the post-19 July Article 6 route

Answer: D. Article 7 first excludes the migrant and then creates a controlled exception. The constitutional phrase is resettlement or permanent return, not any permit.

Core MCQ 5. Article 8 primarily concerned

- A. persons of Indian origin ordinarily residing abroad who obtained consular/diplomatic registration
- B. persons born in India after 3 December 2004
- C. foreign spouses of OCI cardholders
- D. persons detected as foreigners in Assam

Answer: A. Article 8 is the commencement-era diaspora route. Modern OCI is a separate statutory foreign-national status.

Core MCQ 6. Which statement best captures Articles 10 and 11 together?

- A. Citizenship at commencement is immutable
- B. Continuance is subject to parliamentary law, and Parliament may regulate acquisition, termination and other citizenship matters
- C. State legislatures possess exclusive citizenship power
- D. Parliament may legislate only on naturalisation

Answer: B. Article 10 preserves continuity subject to law; Article 11 preserves broad parliamentary competence.

Core MCQ 7. A person was born in India on 2 July 1987. Which minimum statutory fact, apart from the Section 3(2) exceptions, would establish citizenship by birth?

- A. Five years' later residence in India
- B. Both parents had to be citizens
- C. Either parent was a citizen at the time of birth
- D. Consular registration within one year

Answer: C. The either-parent rule applies from 1 July 1987 until the 2003 amendment commenced on 3 December 2004.

Core MCQ 8. Which one is required for a person born outside India on or after 3 December 2004 to claim citizenship by descent?

- A. Residence in India for seven years
- B. Birth to an Indian father only
- C. Marriage to an Indian citizen
- D. Consular registration within one year, or later with Central Government permission, alongside the statutory controls

Answer: D. Parentage remains necessary but is no longer sufficient. Registration and the foreign-passport undertaking are high-value close-option details.

Core MCQ 9. Which person has a Section 5 registration route but does not become a citizen automatically from the described relationship?

- A. A foreign spouse of an Indian citizen who satisfies the prescribed seven-year residence calculation
- B. Every tourist born in a former princely State

- C. Every foreign employee of an Indian company
- D. Every OCI cardholder immediately upon receiving the card

Answer: A. Marriage creates an eligibility route, not citizenship by operation of marriage. Application, discretion, residence and oath remain.

Core MCQ 10. Under the general Third Schedule rule, naturalisation ordinarily requires

- A. five continuous years immediately before application
- B. twelve months immediately before application plus at least eleven aggregate years in the preceding fourteen-year window
- C. seven years immediately before application with no language requirement
- D. ten years from detection as a foreigner

Answer: B. The two residence limbs must be kept separate. CAA changes the aggregate limb for its specified class, not the basic architecture.

Core MCQ 11. Which statement about distinguished-service naturalisation is correct?

- A. Only the Supreme Court can waive residence
- B. No condition can ever be waived
- C. The Central Government may waive all or any Third Schedule conditions for distinguished service in listed fields
- D. The waiver is confined to Olympic medal winners

Answer: C. Section 6 expressly names science, philosophy, art, literature, world peace and human progress generally.

Core MCQ 12. Which category is outside Section 10(1)'s deprivation gate?

- A. A citizen by naturalisation
- B. A citizen by virtue only of Article 5(c)
- C. Some citizens by registration, subject to statutory exclusions
- D. A citizen by birth

Answer: D. Section 10 is category-limited. Citizens by birth and descent do not fall within its opening category.

Core MCQ 13. A full-age citizen makes a valid declaration giving up Indian citizenship. This is

- A. renunciation; a minor child also ceases but may resume by declaration within one year after attaining full age
- B. termination; the child can never resume
- C. deprivation; no declaration is necessary
- D. expatriation under Article 9 alone

Answer: A. Section 8 governs voluntary declaration. Wartime registration may be withheld.

Core MCQ 14. Termination under Section 9 is most directly linked to

- A. seven years' residence outside India
- B. voluntary acquisition of another country's citizenship
- C. a two-year sentence within five years of naturalisation
- D. constitutional disaffection

Answer: B. The other listed circumstances are potential deprivation grounds for eligible categories.

Core MCQ 15. Which one of the following is the best legal distinction?

- A. Citizenship and residence are synonyms
- B. Domicile is a State-created second citizenship
- C. Citizenship is membership, domicile is permanent legal home, and residence is factual presence
- D. Residence automatically confers the franchise

Answer: C. Residence can be relevant to enrolment or benefits but does not itself confer citizenship or voting.

Core MCQ 16. Which textual caveat is most accurate?

- A. Article 30 expressly says "citizens only"
- B. Article 29 protects every foreign tourist
- C. Articles 14 and 21 are citizen-only
- D. Article 30 uses "minorities", whereas Article 29 expressly uses citizen/citizens

Answer: D. This distinction prevents over-reliance on simplified textbook lists.

Core MCQ 17. Under Section 6A, Indian-origin persons who came from the specified territory to Assam before 1 January 1966 and met the residence condition were

- A. deemed citizens from 1 January 1966
- B. denied citizenship for ten years from detection
- C. governed by the CAA 2014 cut-off
- D. required to prove entry after 25 March 1971

Answer: A. The ten-year electoral exclusion belongs to the 1966-1971 detected stream.

Core MCQ 18. A Section 6A person who came between 1 January 1966 and before 25 March 1971, was detected as a foreigner and registered

- A. becomes a voter immediately on detection
- B. receives most citizen rights/obligations but is excluded from electoral rolls for ten years from detection, after which citizenship is deemed for all purposes
- C. remains permanently an alien
- D. is governed by Article 5 alone

Answer: B. Section 6A deliberately separates interim civil status from political enrolment.

Core MCQ 19. What did the controlling majority hold in In Re: Section 6A (2024)?

- A. Section 6A was invalid from inception
- B. Section 6A created unconstitutional dual citizenship
- C. Section 6A was constitutionally valid, although implementation machinery was inadequate
- D. The Assam cut-off was moved to 31 December 2014

Answer: C. Validity and enforcement were treated separately. The majority also called for monitoring and stronger implementation.

Core MCQ 20. Justice J.B. Pardiwala's sole dissent would have

- A. cancelled all citizenship ever granted under Section 6A
- B. upheld Section 6A without qualification
- C. replaced the 1971 cut-off with 1950
- D. invalidated Section 6A prospectively because temporal open-endedness and the detection design had become manifestly arbitrary

Answer: D. The dissent protected past grants and specified pending cases; it did not demand retrospective mass cancellation.

Core MCQ 21. Which is correct regarding OCI?

- A. It is a statutory foreign-national card status, not Indian citizenship or dual citizenship
- B. It confers the right to vote after five years
- C. It guarantees Article 16 public-employment equality
- D. It replaces the holder's foreign passport with an Indian passport

Answer: A. The 2021 notification expressly treats the OCI cardholder as a foreign national holding a foreign passport.

Core MCQ 22. Under the 2021 OCI notification, an OCI cardholder generally receives

- A. unrestricted parity with citizens in every field

- B. a lifelong multiple-entry visa, but special permission for listed research, missionary/Tabligh, mountaineering, journalistic and protected-area activities
- C. automatic eligibility for citizen-reserved educational seats
- D. a right to purchase agricultural land

Answer: B. OCI rights are notified and limited. Outside specified parity, the default is foreigner treatment.

Core MCQ 23. Which set exactly matches the CAA statutory class?

- A. All persecuted persons from every neighbouring country who entered before 2020
- B. All non-Muslims from South Asia
- C. Hindu, Sikh, Buddhist, Jain, Parsi or Christian persons from Afghanistan, Bangladesh or Pakistan who entered on/before 31 December 2014 and fall within the statutory exemption framework
- D. Every migrant from Bangladesh who entered before 24 March 1971

Answer: C. Community, country, date and exemption are cumulative elements. The Assam cut-off belongs to a different legal regime.

Core MCQ 24. Which statement about CAA operation is correct?

- A. The Rules were first notified in 2026
- B. The CAA automatically confers citizenship without application
- C. Section 6B applies uniformly throughout every Sixth Schedule and Inner Line area
- D. Rules 2024 create an electronic application-verification-oath-decision process, and the aggregate naturalisation period is reduced from eleven to five for the specified class while the immediate twelve-month limb remains

Answer: D. This option combines the procedural and residence details that close options often split incorrectly.

Core MCQ 25. What is the safest statement about the Immigration and Foreigners (Exemption) Order, 2025?

- A. It gives specified six-community entrants from Afghanistan, Bangladesh and Pakistan who entered by 31 December 2024 a passport/visa exemption under the new immigration regime, but it does not shift the CAA citizenship cut-off from 31 December 2014
- B. It amends Section 6B and grants automatic citizenship to every protected entrant
- C. It repeals the Citizenship Act, 1955
- D. It converts OCI into citizenship

Answer: A. The 2025 Order operates under the Immigration and Foreigners Act, 2025. The Citizenship Act's CAA class and its 31 December 2014 entry cut-off remain unchanged.

Core MCQ 26. Why is the statement "every citizen can vote as a Fundamental Right" incorrect?

- A. Only naturalised citizens can vote
- B. Voting is a statutory right: citizenship is necessary, but age, ordinary residence, enrolment and disqualification rules under electoral law also apply
- C. Article 19 expressly creates an unconditional vote
- D. Voting is available to resident foreigners

Answer: B. Citizenship is a threshold under electoral law, not a self-executing franchise. Enrolment and other statutory conditions remain necessary.

Core MCQ 27. Which distinction is textually correct?

- A. Article 15 prohibits every residence preference because it lists residence
- B. Article 16(3) allows every State legislature independently to prescribe residence for public employment
- C. Article 15(1) lists place of birth, not residence; residence classifications remain subject to Article 14 and other constitutional limits
- D. Residence and place of birth are constitutional synonyms

Answer: C. A close option often substitutes residence for place of birth. The omission does not make every residence classification valid; equality review still applies.

Core MCQ 28. Which statement correctly describes former Article 35A after the 2019 constitutional changes?

- A. It remains the principal current source of J&K citizenship
- B. It created a second sovereign citizenship for J&K
- C. It was enacted by the J&K legislature under Article 11
- D. It is not a current constitutional exception; present local domicile rules do not create separate State citizenship

Answer: D. Historical permanent-resident privileges must not be written as current constitutional law.

Core MCQ 29. Section 3(2) excludes citizenship by birth in India in which situation?

- A. A parent is an accredited foreign envoy with diplomatic immunity and is not an Indian citizen, or an enemy-alien parent and the birth occurs in enemy-occupied territory
- B. Either parent was born outside India
- C. The child later resides abroad
- D. The parents use a foreign language at home

Answer: A. These are the precise statutory exceptions; they are not a general parental-nationality test for every period.

Core MCQ 30. For a person born outside India before 10 December 1992, the original descent rule ordinarily looked to

- A. either grandparent alone
- B. the father's Indian citizenship, subject to the statutory framework
- C. seven years' residence in India
- D. an OCI card held by either parent

Answer: B. The gender-neutral either-parent rule applies from 10 December 1992.

Core MCQ 31. In Section 5 registration routes using the seven-year ordinary-residence formula, "seven years" generally means

- A. seven uninterrupted years immediately before application
- B. any seven years in the applicant's lifetime
- C. twelve months immediately before application plus at least six aggregate years in the preceding eight years
- D. five years after receiving an OCI card with no other condition

Answer: C. UPSC may test the calculation rather than the headline number. Eligibility still does not guarantee registration.

Core MCQ 32. Which citizen is outside Section 10(1)'s deprivation category gate?

- A. A naturalised citizen
- B. A citizen solely through Article 5(c)
- C. A covered citizen by registration
- D. A citizen by descent

Answer: D. Section 10 is not a universal cancellation power; birth and descent citizens fall outside its opening category.

Core MCQ 33. What follows when a full-age citizen's renunciation declaration is registered?

- A. The person's minor child also ceases to be a citizen, but may resume by declaration within one year after attaining full age
- B. Every adult relative automatically loses citizenship
- C. The declaration is legally identical to deprivation
- D. The minor child can never resume citizenship

Answer: A. The minor-child consequence and limited resumption window are exact Section 8 points.

Core MCQ 34. Which statement about OCI cancellation is correct?

- A. It is impossible once a lifelong visa is issued
- B. Section 7D supplies listed grounds and requires a reasonable opportunity of hearing
- C. Only Parliament may cancel an individual registration by statute
- D. Cancellation automatically makes the person an Indian citizen

Answer: B. OCI is statutory and conditional; fraud, specified offences and security/public-interest grounds are among the listed triggers.

Core MCQ 35. Under Section 6B, which statement is correct?

- A. Filing an application itself retrospectively makes the applicant a citizen
- B. All pending proceedings abate on portal registration
- C. On grant, the person is deemed a citizen from the date of entry, and specified pending proceedings abate on conferment-not merely on application
- D. The certificate creates a separate State citizenship

Answer: C. The distinction between application and grant prevents a predictable close-option error.

Core MCQ 36. The territorial exclusions from Section 6B cover

- A. every State in the Northeast
- B. only Assam
- C. every border district in India
- D. Sixth Schedule tribal areas in Assam, Meghalaya, Mizoram and Tripura, and areas under the notified Inner Line

Answer: D. The statutory exclusions are specific; "the whole Northeast" is inaccurate.

Core MCQ 37. Which statement about an Electoral Photo Identity Card is most accurate?

- A. Electoral enrolment legally presupposes citizenship, but an EPIC is not an irrebuttable citizenship certificate if the enrolment itself is disputed or erroneous
- B. It proves domicile in every State
- C. It replaces a citizenship certificate under the 1955 Act
- D. It grants Article 19 rights to a foreigner

Answer: A. A document may be evidence in administration without conclusively deciding status in every legal proceeding.

Core MCQ 38. Which proposition about an Indian passport is safest?

- A. It is irrelevant to nationality
- B. It is strong ordinary evidence of nationality and travel status, but should not be described as an irrebuttable citizenship certificate in every conceivable dispute
- C. It automatically proves State domicile
- D. Every travel document under the Passports Act proves Indian citizenship

Answer: B. Exam answers should distinguish strong evidence from universal conclusive proof.

Core MCQ 39. Why can a citizenship decision be judicially reviewed even though citizenship is not a Fundamental Right?

- A. Article 11 converts citizenship into an unreviewable parliamentary privilege
- B. Only naturalisation decisions are reviewable
- C. Statutory classifications and procedures remain subject to Articles 14 and 21, natural justice and constitutional judicial review
- D. Every applicant has a Fundamental Right to citizenship

Answer: C. Statutory status does not mean constitutional immunity; review tests legality, equality and fair procedure.

Core MCQ 40. Which is the safest current-status sentence as of 21 August 2026?

- A. The Supreme Court has finally struck down the CAA
- B. The Supreme Court has finally upheld every part of the CAA
- C. The 2025 immigration law moved the CAA citizenship cut-off to 2024
- D. The CAA and 2024 Rules operate; February and March 2026 orders prepared the challenge batch for final hearing, but a bounded official search located no final constitutional judgment

Answer: D. Operative legislation, procedural hearing orders and final constitutional adjudication must be kept separate.

Eight remedial MCQs for recurring traps

Remedial MCQ 41. A student writes, "Aadhaar appears in a CAA Rules document list, so Aadhaar proves Indian citizenship." The best correction is

- A. Aadhaar may evidence entry/presence for that application schedule, but the Aadhaar framework says it does not by itself prove citizenship or domicile
- B. Aadhaar proves citizenship only in Assam
- C. Aadhaar proves citizenship if issued before 2014
- D. Aadhaar and citizenship certificate are legally identical

Answer: A. The evidentiary purpose of a document must be kept separate from the legal status being decided.

Remedial MCQ 42. A candidate states, "Article 9 by itself universally bans every form of dual status in every later case." The precise correction is

- A. India allows full dual citizenship through OCI
- B. Article 9 directly qualifies Articles 5, 6 and 8 at commencement; the current single-citizenship result also rests on the Citizenship Act, especially Section 9, and OCI is not citizenship
- C. Article 9 has been repealed
- D. Article 9 applies only to State domicile

Answer: B. The conclusion of no dual Indian citizenship is correct, but the legal explanation must not detach Article 9 from its text and statutory continuation.

Remedial MCQ 43. A student says deprivation applies to every citizen whenever the Government alleges disloyalty. Which correction is best?

- A. Deprivation applies only to citizens by birth
- B. No citizen can ever be deprived
- C. Section 10 first limits the categories against whom the power exists, and only then applies listed grounds, public-good satisfaction, notice and inquiry safeguards
- D. Deprivation is automatic on a police complaint

Answer: C. Category, ground and procedure are separate statutory gates.

Remedial MCQ 44. A candidate writes that all entrants before 31 December 2014 are protected by Section 6A. The correction is

- A. Section 6A uses the 2014 cut-off only for OCI
- B. Section 6A has no date
- C. Section 6A applies throughout India
- D. Section 6A's Assam stream ends before 25 March 1971; 31 December 2014 is the CAA entry cut-off for its specified class

Answer: D. Mixing the 1971 and 2014 dates is among the most predictable UPSC traps.

Remedial MCQ 45. A student says, "The 2024 Section 6A judgment struck the provision down because implementation was poor." The correction is

- A. The 4:1 majority upheld it while separately issuing implementation directions; only the dissent favoured prospective invalidity
- B. The Court did not decide validity
- C. Parliament repealed Section 6A during the case
- D. The majority adopted the dissent

Answer: A. Implementation criticism is not the same as a holding of invalidity.

Remedial MCQ 46. A candidate describes an OCI cardholder as "an Indian citizen residing abroad." The correct category is

- A. Resident citizen
- B. Foreign national with a statutory OCI card; an NRI, by contrast, remains an Indian citizen abroad
- C. Stateless person
- D. Citizen by descent

Answer: B. OCI and NRI answer different questions: nationality versus residence.

Remedial MCQ 47. A student states that the CAA's five-year rule eliminates every other naturalisation condition. The correction is

- A. It eliminates the oath only
- B. It applies to every foreigner
- C. It substitutes five for eleven in the aggregate residence/service limb for the specified class; other statutory qualifications continue
- D. It applies only to Section 6A

Answer: C. The Rules and Third Schedule must be read together.

Remedial MCQ 48. A candidate writes, "State domicile proves that India has multiple citizenships." The best response is

- A. Every State creates its own passport
- B. State legislatures control Article 11
- C. Domicile and citizenship are identical
- D. Local residence/domicile terminology and constitutional regional safeguards do not create a separate State citizenship

Answer: D. India uses one national membership with bounded regional asymmetry.

PYQS AND ANSWER PRACTICE

PYQ provenance audit

PYQ	Verification status	Treatment
2018 Prelims GS-I Q12	Exact text read from local official Set-C paper; direct local official key unavailable	Included as a genuine cross-topic citizenship-proof PYQ; answer labelled inferred
2021 Prelims GS-I Q89	Exact text read from local official paper and routed directly to Citizenship; direct local official key unavailable	Included as the direct owner PYQ; answer labelled inferred

[LIMIT] Repository-wide 2018-2026 routing/integration-ledger searches and local official-paper checks located no additional genuinely direct Citizenship PYQ and no direct Mains PYQ. The six Mains questions below are explicitly original.

PYQ 1. Prelims 2018, GS Paper I, Question 12 - official local paper; cross-topic citizenship-proof relevance

Question: Consider the following statements:

1. Aadhaar card can be used as a proof of citizenship or domicile.
2. Once issued, Aadhaar number cannot be deactivated or omitted by the Issuing Authority.

Which of the statements given above is/are correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: D. Neither 1 nor 2. Confidence: high.

Solution: Statement 1 is false. Section 9 of the Aadhaar Act and UIDAI's official formulation make clear that Aadhaar does not by itself confer or prove citizenship or domicile. Statement 2 is false because the Aadhaar framework permits deactivation or omission in prescribed circumstances. The question was read from the local official 2018 Set-C paper, but a usable local official answer key was not available; the key is therefore labelled as a reasoned inference rather than an official UPSC answer.

Why this is a strong solution: It tests each statement independently, names the governing statutory/UIDAI control and keeps identity evidence separate from citizenship status.

PYQ 2. UPSC Prelims 2021, GS Paper I, Question 89 - verbatim-verified from the local official paper

Question: With reference to India, consider the following statements:

1. There is only one citizenship and one domicile.
2. A citizen by birth only can become the Head of State.
3. A foreigner once granted the citizenship cannot be deprived of it under any circumstances.

Which of the statements given above is/are correct?

- A. 1 only
- B. 2 only
- C. 1 and 3
- D. 2 and 3

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: A. 1 only. Confidence: high.

Solution: Statement 1 is correct. India has one Indian citizenship, and *Pradeep Jain* explains the constitutional idea of one domicile in India rather than separate State domiciles. Statement 2 is wrong because Article 58 requires the President to be a citizen of India; it does not impose a citizenship-by-birth condition. Statement 3 is wrong because Section 10 permits deprivation of defined categories of citizens on listed grounds and through prescribed safeguards. The local repository does not hold the official 2021 Prelims answer key, so this solution is an inference from the Constitution, statute and judgment, not an official UPSC key.

Why this is a strong solution: It tests each statement independently, names the controlling constitutional/statutory rule and does not convert a high-confidence inference into an official answer.

Six original solved Mains models

Original 10-marker 1: Distinguish citizenship, domicile and residence. Why does the distinction matter in Indian constitutional law? (150 words)

Model answer. Thesis: Citizenship is legal membership of India; domicile is a person's permanent legal home supported by residence and intention; residence is factual or ordinary physical presence. **Evidence:** Articles 5-11 and the Citizenship Act govern membership. Article 5 used domicile in India as a commencement gateway. *Pradeep Jain v. Union of India* stressed one Indian citizenship and one Indian domicile, while electoral law and Sections 5-6 of the Citizenship Act use ordinary residence for constituency or acquisition purposes. **Analysis:** The distinction prevents three errors. First, a State residence certificate cannot create State citizenship. Second, long residence does not automatically produce citizenship. Third, political rights require citizenship even when residence supplies an additional condition, as with electoral registration. **Qualification:** The Constitution still permits bounded regional protection through Articles 16(3), 19(5) and 371-based arrangements. **Conclusion:** India combines one political membership with differentiated residence-based administration; confusing the categories either overstates local preference or understates national citizenship.

Why this earns marks: It defines all three terms, uses Article 5, *Pradeep Jain* and specific constitutional exceptions, and ends with a qualified rather than absolute conclusion.

Original 10-marker 2: Explain why OCI is not dual citizenship. Evaluate the logic of its principal rights and restrictions. (150 words)

Model answer. Thesis: OCI is a statutory foreign-national card status under Sections 7A-7D, not Indian citizenship. **Evidence:** The 2021 MHA notification describes an OCI cardholder as a foreign national holding a foreign passport and grants a lifelong multiple-entry visa, limited parity in fees, NRI-equivalent access in specified education/property/professional fields and FRRO exemption. Section 7B withholds the vote, legislative membership, Presidency/Vice-Presidency, judgeship and Article 16 public-employment equality. **Analysis:** The design supports diaspora mobility, investment and cultural connection without creating competing political allegiance. The restrictions track the distinction between social-economic access and democratic authorship. **Qualification:** OCI is not secure against all change: rights depend on notification and registration can be cancelled under Section 7D with a hearing. **Conclusion:** OCI is calibrated external membership - deeper than an ordinary visa, but deliberately short of nationality and political membership.

Why this earns marks: It names the statutory sections and 2021 notification, links each right/restriction to a design rationale, and avoids the "half citizenship" cliché.

Original 15-marker 1: The Constitution settled citizenship at commencement but left its future architecture to Parliament. Discuss. (250 words)

Model answer. Thesis: Part II creates a founding membership settlement, while Articles 10-11 deliberately make citizenship a continuing statutory project. **Constitutional settlement:** Article 5 uses domicile plus birth, parentage or five-year residence. Article 6 regularises specified migrants from Pakistan, dividing them at 19 July 1948. Article 7 excludes post-1 March 1947 migrants to Pakistan but permits a resettlement/permanent-return route. Article 8 enables consular registration of persons of Indian origin abroad. Article 9 disqualifies voluntary foreign citizenship for the specified commencement routes. **Parliamentary continuation:** Article 10 continues status subject to law; Article 11 preserves Parliament's power over acquisition, termination and all citizenship matters. The Citizenship Act, 1955 consequently supplies five acquisition routes - birth, descent, registration, naturalisation and incorporation - and three loss routes - renunciation, termination and deprivation. **Analysis:** The arrangement gives flexibility to respond to changing migration, diaspora and territorial conditions, illustrated by Section 6A, OCI and CAA amendments. **Qualification:** Parliamentary breadth is not constitutional immunity. Article 14 review, Article 21 procedure and natural justice constrain classification, deprivation and cancellation. The 2024 Section 6A judgment demonstrates this duality: wide legislative competence, but searching constitutional review and implementation directions. **Conclusion:** The Constitution fixed the Republic's first citizenry; Parliament continuously defines the membership boundary, under constitutional supervision.

Why this earns marks: It answers both halves, covers every Article without becoming a list, links Article 11 to named statutory institutions and uses current case law as analysis.

Original 15-marker 2: Section 6A is constitutionally valid, but its implementation remains a governance challenge. Analyse in light of the 2024 Constitution Bench judgment. (250 words)

Model answer. Thesis: The 4:1 judgment separates the validity of Assam's historical settlement from the adequacy of its enforcement. **Scheme:** Section 6A deems pre-1966 Indian-origin entrants citizens; subjects the 1966-before-25 March 1971 stream to detection, registration and a ten-year electoral exclusion; and protects no post-cut-off entrant. **Majority:** Chief Justice Chandrachud and Justice Surya Kant's three-judge opinion upheld Parliament's Article 11 competence and found Assam plus the 1971 date to be a reasonable classification. They rejected challenges under Articles 6, 7, 9, 14, 21, 29, 326 and 355; Article 29 protects the capacity to conserve culture, and destruction of that capacity was not proved. **Governance deficit:** Justice Surya Kant nevertheless found tribunals and statutory machinery inadequate, stressed detection/deportation of post-1971 entrants, effective use of complementary laws and continuing judicial monitoring. **Dissent:** Justice Pardiwala argued that the absence of temporal closure and State-centred detection burden made Section 6A(3) manifestly arbitrary with time; he would invalidate prospectively while preserving past grants. **Assessment:** The dissent identifies design risk, but the majority controls. Administrative failure cannot be casually converted into invalidity; nor can validity excuse indefinite non-enforcement. **Conclusion:** Section 6A survives as law, but legitimacy now depends on timely, rights-respecting and reviewable implementation.

Why this earns marks: It gives the exact streams, majority holdings, sole dissent and a reasoned validity-versus-administration verdict.

Original 20-marker 1: Critically examine the Citizenship (Amendment) Act, 2019 as a classification under Article 14 and as an instrument of humanitarian policy. (250 words)

Model answer. Thesis: CAA is an operative humanitarian facilitation whose constitutional legitimacy depends on whether its religion-country-date class is a reasonable response or an impermissibly under-inclusive citizenship preference. **Statutory design:** The law covers Hindus, Sikhs, Buddhists, Jains, Parsis and Christians from Afghanistan, Bangladesh and Pakistan who entered on/before 31 December 2014 and fall within specified exemptions. Section 6B enables registration/naturalisation, deems citizenship from entry upon grant and excludes Sixth Schedule tribal and Inner Line areas. The Third Schedule's aggregate period falls from eleven to five years; Rules 2024 require electronic application, documentary verification, oath and Empowered Committee decision. **Article 14 criticism:** Religion is explicit. Critics cite excluded Muslim sects and persecuted groups from other neighbours, secularism as a basic feature and the possibility that country selection is under-inclusive. Assam adds a federal-cultural objection: the 2014 date departs from the Accord's 1971 settlement. **Defence:** The State frames a narrow remedial class tied to Partition and vulnerable minorities in three selected neighbours; legislatures may address problems in stages. No existing citizen loses status and ordinary citizenship routes remain. Territorial exclusions show regional accommodation. **Assessment:** Humanitarian purpose does not end equality review; equally, under-inclusion does not automatically invalidate classification. The Court must test comparator, differentia, nexus and arbitrariness. **Conclusion:** Because the Act and 2024 Rules operate while constitutional challenges remain pending, the sound verdict is conditional: humanitarian legitimacy will endure only if the classification is judicially accepted as precise, non-arbitrary and secularism-compatible.

Why this earns marks: It states the exact law, separates aggregate and immediate residence, applies both sides of Article 14, adds Assam and current status, and avoids predicting the pending case.

Original 20-marker 2: India's single citizenship coexists with differentiated regional protections. Does this strengthen or weaken the Union? Discuss. (250 words)

Model answer. Thesis: Single citizenship supplies equal national membership; differentiated protections can strengthen that membership when they are constitutionally bounded, but weaken it when residence becomes a proxy for exclusion. **Integrative core:** Unlike classical federations with State citizenship, India gives one citizenship, one national franchise structure and interstate mobility under Article 19. *Pradeep Jain* rejects a separate State domicile in the constitutional sense. This lowers internal membership barriers and supports fraternity and a national labour market. **Protective asymmetry:** Article 16(3) allows Parliament to prescribe residence conditions for specified public posts; Article 19(5) permits tribal-protection restrictions; Articles 371A-371J protect customary law, land, local cadres or regional opportunity. Section 6A is another historical asymmetry, but it creates Indian rather than Assam citizenship. **Benefits:** These devices can reduce domination fears, preserve indigenous institutions and make national membership credible in culturally vulnerable regions. **Risks:** Excessive local quotas, vague "domicile" barriers or political hostility to interstate migrants can hollow out equal citizenship and conflict with Articles 14, 16(2) and 19. The former Article 35A debate illustrates how entrenched local privilege can become constitutionally contested. **Test:** A valid safeguard should have constitutional/statutory authority, a legitimate vulnerability or governance objective, proportional means, temporal review and no claim to a separate nationality. **Conclusion:** Differentiation strengthens the Union when it secures participation within common citizenship; it weakens the Union when it converts residence into hereditary political closure.

Why this earns marks: It uses named Articles, *Pradeep Jain*, Section 6A and a proportionality-style test, while balancing integration against regional vulnerability.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

A. Citizenship is a gatekeeping status, not merely a rights bundle

[ANALYSIS] Citizenship performs three functions at once: it allocates political voice, determines eligibility for selected public offices and supplies a legal identity in international relations. That is why apparently technical rules about dates and parentage also decide who participates in democratic authorship.

B. Fraternity and exclusion pull in opposite directions

[ANALYSIS] A citizenship law can advance fraternity by integrating long-settled populations, yet weaken it if classification appears to stigmatise another group. The Section 6A majority treated historical accommodation as fraternity-consistent; CAA critics use fraternity and secularism to question religion-coded selection. The concepts do not mechanically produce an answer; they organise the competing constitutional claims.

C. Equality review must identify the comparator

[ANALYSIS] CAA analysis often fails because the comparator remains unstated. Possible comparators include all persecuted migrants, all undocumented migrants from neighbouring States, or only the six minorities in the selected three countries. The constitutional result can shift with the level at which the class is framed. A strong answer makes that choice explicit before applying differentia and nexus.

D. Temporal reasonableness after the Section 6A dissent

[ANALYSIS] Justice Pardiwala's dissent adds a design question: can a provision valid at enactment become arbitrary when its mechanism has no workable temporal closure? The majority rejected invalidity but accepted grave implementation deficiencies. The enduring analytical lesson is to distinguish a defective rule from defective administration while recognising that prolonged administrative failure can expose design weaknesses.

E. National membership and federal asymmetry

[ANALYSIS] Section 6A is Assam-specific but produces Indian citizenship. Articles 371 and local-cadre systems are region-specific but operate inside one citizenship. These examples show that Indian federalism manages diversity through asymmetric incidents and procedures rather than multiple nationalities.

F. OCI as calibrated external membership

[ANALYSIS] OCI offers mobility, property/professional access and cultural connection while withholding the franchise, public office and a general equality claim in public employment. It is best understood as calibrated external membership, not "half citizenship" and not an Indian nationality.

G. Political Theory cross-link - bounded enrichment only

[ANALYSIS] Liberal theory emphasises equal legal membership; republican theory links citizenship to participation and civic responsibility; multicultural theory asks whether formally equal citizenship adequately protects distinct communities; feminist and subaltern critiques expose how documents, family law, displacement and administrative burden can make formal membership unequal in practice.

[LIMIT] These critiques enrich a GS-II conclusion but do not replace Articles 5-11, the Citizenship Act, Section 6A, OCI or CAA. Constitutional/statutory ownership comes first.

H. A citizenship decision has at least four review layers

Layer	Question
Status source	Which constitutional Article, statutory section or order creates the claim?
Fact proof	Which date, parent, residence, migration, entry or registration fact must be proved?
Procedure	Which authority, application, notice, oath, hearing or appeal applies?
Constitutional control	Does the classification or decision satisfy Articles 14/21 and natural justice?

[ANALYSIS] This four-layer method is reusable for CAA applications, deprivation, OCI cancellation and disputed birth/descent claims.

CONSOLIDATED REGISTER NOTES

Controlled answer-line bank

1. **OPENING:** Citizenship is the legally recognised membership of the Indian political community: it links allegiance and protection, allocates political voice and selected public offices, and remains principally statutory after the Constitution's commencement settlement.
2. **RIGHTS MAP:** India's rights map follows constitutional text, not a citizen-versus-alien slogan: Articles 14, 20, 21 and 25 protect persons; Articles 15, 16, 19 and 29 are citizen-specific; Article 30 speaks of minorities; and voting is statutory, not a Fundamental Right.
3. **ARTICLES 5-11:** Articles 5-8 identified citizens at commencement, Article 9 disqualified voluntary foreign citizenship for the specified commencement routes, Article 10 continued status subject to law, and Article 11 empowered Parliament to build the permanent statutory regime.
4. **ACQUISITION / LOSS:** The Citizenship Act, 1955 creates five acquisition routes-birth, descent, registration, naturalisation and incorporation of territory-and three distinct loss routes-renunciation, termination and category-limited deprivation-each with its own trigger and safeguards.
5. **SINGLE CITIZENSHIP:** India combines one national citizenship and one Indian domicile with constitutionally authorised regional protection; residence preferences, Articles 16(3), 19(5) and 371 safeguards do not create State citizenship.
6. **SECTION 6A:** Section 6A is an Assam-specific route to Indian citizenship: pre-1966 entrants are deemed citizens, the 1966-before-25-March-1971 stream faces detection, registration and ten years without electoral-roll inclusion, and post-cut-off entrants receive no protection.

7. **OCI:** OCI is calibrated diaspora access for a foreign national-not dual citizenship-because notified mobility and socio-economic facilities coexist with no vote, no Indian passport and no claim to citizen-reserved public office.
8. **CAA DEBATE:** The CAA debate turns on whether a six-community, three-country and 31-December-2014 facilitation is a reasonable humanitarian classification or an under-inclusive religion-coded preference incompatible with Article 14 and secularism.
9. **CURRENT STATUS:** As verified on the located official record through 21 August 2026, the 2019 Act and 2024 Rules are operative, the CAA constitutional challenges have no located final judgment, Section 6A remains valid under the 4:1 decision with implementation monitoring, and the 2021 OCI notification remains unsuperseded.
10. **FINAL VERDICT:** Indian citizenship law is constitutionally founded, statutorily administered and judicially reviewable; its legitimacy depends on reconciling equal membership and fraternity with lawful migration control, regional protection and non-arbitrary classification.

Current-law rapid controls - 21 August 2026

- CAA 2019 + Rules 2024: operative; no located final Supreme Court constitutional judgment.
- Supreme Court orders of 19 February and 20 March 2026 organised final hearing and additional material; they were procedural, not a merits verdict.
- Immigration and Foreigners Act/Rules 2025: new immigration regime from 1 September 2025; Citizenship Act not repealed or amended.
- Exemption Order 2025: same six communities + three countries + entry by 31 December 2024 for specified passport/visa exemption; it does **not** change the CAA citizenship cut-off of 31 December 2014.
- Section 6A: 4:1 validity holding remains; 6 February 2025 implementation-monitoring order; no located review or later merits order changing validity.
- OCI: S.O. 1050(E), 4 March 2021 remains the latest located Section 7B rights/restrictions notification.

Membership map and rights

- Citizenship = full legal membership of India; alien = non-citizen.
- Articles 14, 20, 21 and 25 use person-based language; Articles 15, 16 and 19 are citizen-specific.
- Article 22(3)(a) excludes enemy aliens from Article 22(1)-(2); avoid saying every part of Article 22 is textually erased.
- Article 29 expressly uses citizens. Article 30 uses minorities, not the word citizen.
- Vote = statutory right requiring citizenship + electoral enrolment conditions.
- President need only be a citizen, not citizen by birth. Office-specific age/qualification rules still apply.

Citizenship, domicile, residence and single citizenship

- Citizenship = national membership; domicile = permanent legal home; residence = factual/ordinary presence.
- *Pradeep Jain* (1984): one Indian citizenship and one domicile in India; "State domicile" usually means local residence criteria.
- No separate State citizenship.
- Regional protection without separate citizenship: Articles 16(3), 19(5), 371A-371J and lawful local-cadre/residence arrangements.
- Article 15(1) lists place of birth, not residence; residence distinctions still face Article 14 and other limits.

Articles 5-11 rapid spine

Article	One-line rule
5	Domicile in India + birth / either parent born / five years' ordinary residence.
6	Pakistan-to-India migration; ancestry gate; 19 July 1948 divides residence and registration routes.
7	Post-1 March 1947 migration to Pakistan excludes, except permit for resettlement/permanent return followed by post-19 July registration logic.
8	Indian origin abroad + consular/diplomatic registration.
9	Voluntary foreign citizenship disqualifies Articles 5, 6 and 8 claims.
10	Continuance subject to parliamentary law.
11	Parliament may legislate on acquisition, termination and all citizenship matters.

Article 6 and 7 date drill

- Before 19 July 1948: Article 6 requires ordinary residence since migration.
- On/after 19 July 1948: registration before commencement + application before commencement + six months' prior residence.
- Migration to Pakistan after 1 March 1947: Article 7 exclusion.
- Return exception: permit for resettlement/permanent return; treated under post-19 July Article 6 route.

Acquisition under the Citizenship Act, 1955

Mnemonic: B-D-R-N-I = Birth, Descent, Registration, Naturalisation, Incorporation.

Birth

- 26 January 1950-before 1 July 1987: birth in India suffices, subject to exceptions.
- 1 July 1987-before 3 December 2004: either parent citizen.
- From 3 December 2004: both parents citizens, or one citizen + other not illegal migrant.
- Exceptions: specified diplomatic-immunity birth; enemy-alien parent + birth in enemy-occupied place.

Descent

- Before 10 December 1992: father citizen.
- From 10 December 1992: either parent citizen.
- From 3 December 2004: consular registration within one year or Central Government permission later; parental foreign-passport undertaking.

Registration

- Major routes: PIO resident in India; PIO abroad; spouse; minor child; listed parent/independent-India categories; OCI cardholder after five years.
- Seven-year clauses = twelve immediate months + six of preceding eight years.
- Eligibility is not automatic citizenship; application, discretion and oath apply.

Naturalisation

- Full age/capacity; not illegal migrant; reciprocity; good character; Eighth Schedule language; future India connection.
- Residence: twelve immediate months + eleven aggregate years in preceding fourteen.
- Distinguished service waiver possible in named fields.
- CAA class: aggregate eleven becomes five; immediate twelve months remains.

Incorporation

- Central Government Gazette order specifies persons connected to newly incorporated territory and operative date.

Loss under the Act

Mnemonic: R-T-D = Renunciation, Termination, Deprivation.

- Renunciation: full-age declaration; minor child also ceases; may resume within one year after full age.
- Termination: voluntary acquisition of foreign citizenship; prescribed authority resolves disputed fact/time/manner.
- Deprivation category gate:
 - naturalised citizens;
 - citizens by virtue only of Article 5(c);
 - registered citizens except Article 6(b)(ii) and Section 5(1)(a) categories.
- Citizens by birth/descent are outside Section 10(1)'s gate.
- Grounds: fraud; disloyalty/disaffection; enemy assistance; two-year sentence within five years; seven-year continuous foreign residence subject to exceptions/annual retention registration.
- Extra controls: public-good satisfaction, notice and inquiry route.

Assam Accord, Section 6A and NRC

- Before 1 January 1966: deemed citizen from 1 January 1966, subject to statutory conditions.
- 1 January 1966-before 25 March 1971: detection + registration; ten-year electoral exclusion; then citizen for all purposes.
- On/after 25 March 1971: no Section 6A protection.
- NRC/Assam Accord memory date = midnight 24 March 1971.
- Never mix with CAA cut-off = 31 December 2014.

In Re: Section 6A, 17 October 2024

- Constitution Bench 4:1 upheld Section 6A.
- Majority: Article 11 competence; Assam/date class reasonable; no violation of Articles 6, 7, 9, 14, 21, 29, 326 or 355.
- Article 29 claim failed because destruction of Assamese citizens' ability to conserve culture was not proved.
- Justice Surya Kant's opinion: validity yes, implementation inadequate; stronger tribunals/laws and judicial monitoring directed.
- Sole dissent, Justice J.B. Pardiwala: valid at enactment, later manifestly arbitrary due temporal open-endedness and State detection burden; would invalidate prospectively and preserve past grants.
- Present law = majority controls; implementation failure does not equal invalidity.

OCI/PIO/NRI register

- NRI = Indian citizen residing abroad.
- OCI = foreign national with statutory card; not citizenship and not dual citizenship.
- 2003 OCI framework; 2005 expansion; 2015 PIO-OCI merger.
- Section 7A includes former citizens/eligible descendants and qualifying spouses; Pakistan/Bangladesh ancestry exclusion applies as enacted.
- 2021 facilities: lifelong multiple-entry visa; FRRO exemption; limited Indian-national parity; NRI parity in specified adoption, education, non-agricultural property and professions.
- Special permission: research; missionary/Tabligh; mountaineering; journalism; listed diplomatic work; protected/restricted/prohibited areas.
- Section 7B restrictions: no vote, legislature, Presidency/Vice-Presidency, SC/HC judgeship, Article 16 equality or ordinary public service.
- Section 7D: fraud, disaffection, enemy assistance, sentence, specified legal violation, security/public interest and spouse-marriage grounds; hearing required.
- Outside notified rights, OCI defaults to foreigner treatment.

CAA 2019 + Rules 2024

- Communities: Hindu, Sikh, Buddhist, Jain, Parsi, Christian.
- Countries: Afghanistan, Bangladesh, Pakistan.
- Entry: on/before 31 December 2014.
- Also requires coverage by statutory Passport/Foreigners Act exemptions.
- Section 6B route = application for registration/naturalisation; citizenship deemed from entry only after grant.
- Pending illegal-migration/citizenship proceeding abates on conferment, not mere application.
- Excluded territories: Sixth Schedule tribal areas of Assam, Meghalaya, Mizoram, Tripura + Inner Line areas.
- Rules notified 11 March 2024; electronic application -> District Level verification/oath -> Empowered Committee scrutiny/decision -> digital certificate.
- First certificates recorded by PIB on 15 May 2024.
- Operative law; constitutional challenge remains sub judice on the verified record.
- No unsupported "2026 Rules amendment" used.

CAA Article 14 answer frame

Critique	Defence
Religion-coded class; excluded persecuted groups/countries; secularism concern; Assam 1971 conflict	Narrow remedial class linked to three neighbours/six minorities; intelligible differentia/nexus; no existing citizen loses status; ordinary routes remain

- Legal test: comparator -> intelligible differentia -> rational nexus -> manifest arbitrariness.
- Qualified verdict: operational humanitarian facilitation; final constitutional validity awaits authoritative judgment.

Document and proof traps

- Aadhaar: identity/residence; not citizenship or domicile by itself.
- Birth certificate: birth facts; citizenship still depends on date and parental rule.
- Voter ID/electoral roll: citizenship legally required, but enrolment is not an irrebuttable universal citizenship certificate.
- Passport: strong ordinary evidence, not universally conclusive if nationality or issue is legally disputed.
- Domicile/residence certificate: local status, not citizenship.
- Citizenship certificate: direct registration/naturalisation evidence, subject to fraud and statutory review.

PYQ and close-option recall

- 2021 Prelims Q89: one citizenship/one domicile correct; birth-only President false; deprivation-impossible false.
- Included solution label: **INFERRED ANSWER - NOT OFFICIALLY VERIFIED** because no official local key was available.
- Fast traps:
- Article 30 wording is minorities, not citizens.
- Article 9 context + Section 9 together explain present single-citizenship law.
- CAA five-year change is aggregate, not the immediate twelve-month limb.
- Deprivation is category-limited.
- OCI is foreign nationality, not NRI and not dual citizenship.
- 1971 = Assam; 2014 = CAA.

Mains one-line verdicts

- **Constitution:** founding rules in Articles 5-9; statutory evolution through Articles 10-11.
- **Single citizenship:** equal national membership with proportionate regional safeguards.
- **Section 6A:** constitutionally valid, administratively under-enforced.
- **OCI:** diaspora access without democratic membership.
- **CAA:** operative classification, constitutionally sub judice.
- **Proof:** evidence must be matched to the legal route; no single identity card answers every citizenship claim.